

Exhibit 4.10

EXECUTION VERSION

ACTIVISION BLIZZARD, INC.

INDENTURE

Dated as of May 26, 2017

DEBT SECURITIES

WELLS FARGO BANK, NATIONAL ASSOCIATION

Trustee

**Reconciliation and tie between
Trust Indenture Act of 1939 and Indenture***

<u>Trust Indenture Act Section</u>	<u>Indenture Section</u>
§ 310 (a)	11.04(a), 16.02
(b)	11.01(f), 11.04(b), 11.05(1), 16.02
(b)(1)	11.04(b), 16.02
§ 311	11.01(f), 16.02
§ 312	14.02(d), 16.02
(b)	11.10, 16.02
(c)	11.10, 16.02
§ 313 (a)	10.01(a), 16.02
§ 314	16.02
§ 315 (e)	11.05, 16.02
§ 316	16.02
§ 317	16.02
§ 318	16.02

* This reconciliation and tie shall not, for any purpose, be deemed to be a part of the Indenture.

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INDENTURE dated as of May 26, 2017, among ACTIVISION BLIZZARD, INC., a Delaware corporation (the “Company”) and FARGO BANK, NATIONAL ASSOCIATION, as trustee (the “Trustee”).

WITNESSETH:

WHEREAS, the Company has duly authorized the execution and delivery of this Indenture to provide for the issuance of unsecured notes, bonds or other evidences of indebtedness (the “Securities”) in an unlimited aggregate principal amount to be issued from time to time in one or more series as provided in this Indenture; and

WHEREAS, all things necessary to make this Indenture a valid and legally binding agreement of the Company, in accordance with the terms hereof, have been done.

NOW, THEREFORE, THIS INDENTURE WITNESSETH:

That, in consideration of the premises and the purchase of the Securities by the Holders thereof for the equal and proportionate part of the principal amount thereof, the present and future Holders of the Securities, each party agrees and covenants as follows:

ARTICLE I

DEFINITIONS

For all purposes of this Indenture, except as otherwise expressly provided or unless the context otherwise requires:

- (a) the terms defined in this Article have the meanings assigned to them in this Article and include the plural as well as the singular;
- (b) unless otherwise defined in this Indenture or the context otherwise requires, all terms used herein without definition which are defined in the Trust Indenture Act, either directly or by reference therein, have the meanings assigned to them therein;
- (c) the words “herein”, “hereof” and “hereunder” and other words of similar import refer to this Indenture as a whole and not to any particular Article, Section or other subdivision; and
- (d) references to “Article” or “Section” or other subdivision herein are references to an Article, Section or other subdivision of this Indenture, unless the context otherwise requires.

Section 1.01 Definitions.

Unless the context otherwise requires, the terms defined in this Section 1.01 shall for all purposes of this Indenture have the meanings set forth:

Affiliate:

The term “Affiliate,” with respect to any specified Person shall mean any other Person directly or indirectly controlling or controlled by, or exercising direct or indirect common control with such specified Person. For the purposes of this definition, “control” when used with respect to a Person means the power to direct the management and policies of such Person, directly or indirectly, whether through the ownership of a majority of the outstanding shares of such Person, by contract or otherwise; and the terms “controlling” and “controlled” have meanings correlative to the foregoing.

Authenticating Agent:

The term “Authenticating Agent” shall have the meaning assigned to it in Section 11.09.

Board of Directors:

The term “Board of Directors” shall mean either the board of directors of the Company or the executive or any other committee or authority authorized to act in respect hereof.

Board Resolution:

The term “Board Resolution” shall mean a copy of a resolution or resolutions certified by the Secretary or an Assistant Secretary to have been duly adopted by the Board of Directors (or by a committee of the Board of Directors to the extent that any such other committee is authorized by the Board of Directors to establish or approve the matters contemplated) and to be in full force and effect on the date of certification and delivered to the Trustee.

Business Day:

The term “Business Day,” when used with respect to any Place of Payment or any other particular location referred to in this Indenture and Securities, shall mean each Monday, Tuesday, Wednesday, Thursday and Friday which is not a day on which banking institutions in the Place of Payment or such location are authorized or obligated by law or executive order to close.

Capital Stock:

The term “Capital Stock” shall mean:

- (a) in the case of a corporation, corporate stock;
- (b) in the case of an association or business entity, any and all shares, interests, participations, rights or other equivalents (however designated) of corporate stock;
- (c) in the case of a partnership or limited liability company, partnership interests (whether general or limited) or membership interests.

(d) any other interest or participation that confers on a Person the right to receive a share of the profits and losses of, or assets of, the issuing Person, but excluding from all of the foregoing any debt securities convertible into Capital Stock, whether or not such securities include any right of participation with Capital Stock.

Code:

The term “Code” shall mean the Internal Revenue Code of 1986, as amended.

Company:

The term “Company” shall mean the Person named as the “Company” in the first paragraph of this Indenture until a successor become such pursuant to the applicable provisions of this Indenture, and thereafter “Company” shall mean such successor.

Company Order:

The term “Company Order” shall mean a written order signed in the name of the Company by any Officer and delivered to

Corporate Trust Office:

The term “Corporate Trust Office,” or other similar term, shall mean the principal office of the Trustee at which at any particular time the trust business shall be administered, which office at the date hereof is located at 333 S. Grand Avenue, Fifth Floor, Suite 5A, Los Angeles, California 90071, Attention: Michael Tu – Account Manager, but with respect to presentation of notes for registration of transfer or exchange or redemption, 1000 North 1st Street, 7th Floor, Minneapolis, MN 55415, Attention: Bondholder Communications or such other address as the Trustee may designate from time to time by notice to the Holders and the Company, or the principal corporate trust officer of any successor Trustee (or such other address as the Trustee may designate from time to time by notice to the Holders and the Company).

Currency:

The term “Currency” shall mean U.S. Dollars or Foreign Currency.

Default:

The term “Default” shall have the meaning assigned to it in Section 11.03.

Defaulted Interest:

The term “Defaulted Interest” shall have the same meaning assigned to it in Section 3.08(b).

Depository:

The term “Depository” shall mean, with respect to the Securities of any series issuable in whole or in part in the form of one or more Securities, each Person designated as Depository by the Company pursuant to Section 3.01 until one or more successor Depositaries are designated such pursuant to the applicable provisions of this Indenture, and thereafter “Depository” shall mean or include each Person who is designated hereunder, and if at any time there is more than one such Person, “Depository” as used with respect to the Securities of any such series shall mean the Depository with respect to the Securities of that series.

Designated Currency:

The term “Designated Currency” shall have the same meaning assigned to it in Section 3.12.

Discharged:

The term “Discharged” shall have the meaning assigned to it in Section 12.03.

DTC:

The term “DTC” shall mean The Depository Trust Company, Inc. and its successors.

Event of Default:

The term “Event of Default” shall have the meaning specified in Section 7.01.

Exchange Act:

The term “Exchange Act” shall mean the United States Securities Exchange Act of 1934, and the rules and regulations promulgated thereunder and any statute successor thereto, in each case as amended from time to time.

Exchange Rate:

The term “Exchange Rate” shall have the meaning assigned to it in Section 7.01.

Floating Rate Security:

The term “Floating Rate Security” shall mean a Security that provides for the payment of interest at a variable rate determined by reference to an interest rate index specified pursuant to Section 3.01.

Foreign Currency:

The term “Foreign Currency” shall mean a currency issued by the government of any country other than the United States or any group of countries, the value of which is determined by reference to the values of the currencies of any group of countries.

GAAP:

The term “GAAP,” with respect to any computations required or permitted hereunder, shall mean generally accepted accounting principles in effect in the United States as in effect from time to time; provided, however if the Company is required by the SEC to adopt (or is permitted to so adopts) a different accounting framework, including but not limited to the International Financial Reporting Standards, “GAAP” shall mean such accounting framework as in effect from time to time, including, without limitation, in each case, those accounting principles set forth in the pronouncements of the Accounting Principles Board of the American Institute of Certified Public Accountants and statements and positions of the Financial Accounting Standards Board or in such other statements by such other entity as approved by a significant segment of the accounting profession.

Global Security:

The term “Global Security” shall mean any Security that evidences all or part of a series of Securities, issued in fully-registered form, deposited with the Depositary for such series in accordance with Section 3.03 and bearing the legend prescribed in Section 3.03(d).

Holder; Holder of Securities:

The terms “Holder” and “Holder of Securities” are defined under “Securityholder; Holder of Securities; Holder of Global Securities” in the Global Securities Legend.

Indebtedness:

The term “Indebtedness” shall mean any and all obligations of a Person for money borrowed which, in accordance with GAAP, are included on the balance sheet of such Person as a liability on the date as of which Indebtedness is to be determined.

Indenture:

The term “Indenture” or “this Indenture” shall mean this instrument as originally executed or as it may from time to time be amended by one or more indentures supplemental hereto entered into pursuant to the applicable provisions hereof, including, for all purposes, this instrument and any such supplemental indenture, the provisions of the Trust Indenture Act that are deemed to be a part of and govern the terms of any such supplemental indenture, respectively. The term “Indenture” shall also include the terms of particular series of Securities contemplated by Section 3.01; provided, however, that if at any time more than one Person is acting as Trustee under this Indenture, the appointment of one or more separate Trustees for any one or more separate series of Securities, “Indenture” shall mean, with respect to each series of Securities for which any such Person is Trustee, this instrument as originally executed or as it may from time to time be supplemented by one or more indentures supplemental hereto entered into pursuant to the applicable provisions hereof and shall include the terms of such indentures. Securities for which such Person is Trustee established as contemplated by Section 3.01, exclusive, however, of any provisions or terms of such indentures solely to other series of Securities for which such Person is not Trustee, regardless of when such terms or provisions were adopted, and

provisions or terms adopted by means of one or more indentures supplemental hereto executed and delivered after such person has become a party to this Indenture, but to which such person, as such Trustee, was not a party; provided, further that in the event that this Indenture is supplemented by one or more indentures supplemental hereto which are only applicable to certain series of Securities, the term "Indenture" for a particular series of Securities shall only include the supplemental indentures applicable thereto.

Individual Securities:

The term "Individual Securities" shall have the meaning specified in Section 3.01(p).

Interest:

The term "interest" shall mean, unless the context otherwise requires, interest payable on any Securities, and with respect to any Discount Security that by its terms bears interest only after Maturity, interest payable after Maturity.

Interest Payment Date:

The term "Interest Payment Date" shall mean, with respect to any Security, the Stated Maturity of an installment of interest on such Security.

Mandatory Sinking Fund Payment:

The term "Mandatory Sinking Fund Payment" shall have the meaning assigned to it in Section 5.01(b).

Maturity:

The term "Maturity," with respect to any Security, shall mean the date on which the principal of such Security shall become due and payable, whether by declaration, call for redemption or otherwise.

Members:

The term "Members" shall have the meaning assigned to it in Section 3.03(i).

Officer:

The term "Officer" shall mean any of the Chairman of the Board of Directors, Chief Executive Officer, the President, Chief Financial Officer, Chief Operating Officer, Chief Legal Officer, Treasurer or Assistant Treasurer, Controller, any Executive Vice President, Senior Vice President, Secretary or Assistant Secretary of the Company.

Officer's Certificate:

The term "Officer's Certificate" shall mean a certificate signed by any Officer and delivered to the Trustee. Each such certificate shall be in the form of the statements provided for in Section 16.01 if and to the extent required by the provisions of such Section.

Opinion of Counsel:

The term “Opinion of Counsel” shall mean an opinion in writing signed by one or more legal counsel, who may be an employee of the Company, and meets the requirements provided for in Section 16.01.

Optional Sinking Fund Payment:

The term “Optional Sinking Fund Payment” shall have the meaning assigned to it in Section 5.01(b).

Original Issue Discount Security:

The term “Original Issue Discount Security” shall mean any Security that is issued with “original issue discount” within the meaning of Section 1273(a) of the Code and the regulations thereunder, or any successor provision, and any other Security designated by the Company as having original issue discount for United States federal income tax purposes.

Outstanding:

The term “Outstanding,” when used with respect to Securities means, as of the date of determination, all Securities theretofore outstanding and not delivered under this Indenture, except:

(a) Securities theretofore canceled by the Trustee or delivered to the Trustee for cancellation;

(b) Securities or portions thereof for which payment or redemption money in the necessary amount has been theretofore paid by the Trustee or any Paying Agent (other than the Company) in trust or set aside and segregated in trust by the Company (if the Company is not the Paying Agent) for the Holders of such Securities or Securities as to which the Company’s obligations have been Discharged; provided that, if such Securities or portions thereof are to be redeemed, notice of such redemption has been duly given pursuant to this Indenture or the applicable law, and satisfactory to the Trustee has been made; and

(c) Securities that have been paid pursuant to Section 3.07(b) or in exchange for or in lieu of which other Securities have been issued, authenticated and delivered pursuant to this Indenture, other than any such Securities in respect of which there shall have been a default by the Responsible Officer of the Trustee proof satisfactory to it that such Securities are held by a protected purchaser in whose hands such Securities the obligations of the Company;

provided, however, that in determining whether the Holders of the requisite principal amount of Securities of a series Outstanding hereunder, Securities owned by the Company or any other obligor upon the Securities of such series or any Affiliate of the Company or any other obligor shall be disregarded and deemed not to be Outstanding, except that, in determining whether the Trustee shall be protected in any such action, only Securities of such series that a Responsible Officer of the Trustee actually knows to be so owned shall be so disregarded. Securities so owned that have been pledged in good faith may be

regarded as Outstanding if the pledgee establishes to the satisfaction of the Trustee the pledgee's right to act with respect to such Securities if the pledgee is not the Company or any other obligor upon such Securities or any Affiliate of the Company or of such other obligor. In default of the Holders of the requisite principal amount of Outstanding Securities of a series have performed any action hereunder, the principal amount of the Original Issue Discount Security that shall be deemed to be Outstanding for such purpose shall be the amount of the principal thereof and payable as of the date of such determination upon a declaration of acceleration of the Maturity thereof pursuant to Section 7.02. The amount of a Security denominated in a Foreign Currency that shall be deemed to be Outstanding for such purpose shall be the amount thereof pursuant to Section 3.11(b).

Paying Agent:

The term "Paying Agent" shall have the meaning assigned to it in Section 6.02(a).

Person:

The term "Person" shall mean any individual, a corporation, a limited liability company, a partnership, an association, a joint venture, a trust, an unincorporated organization or a government or an agency or political subdivision thereof or other entity.

Place of Payment:

The term "Place of Payment" shall mean, when used with respect to the Securities of any series, the place or places where the principal, premium, if any, and interest on the Securities of that series are payable as specified pursuant to Section 3.01.

Predecessor Security:

The term "Predecessor Security" shall mean, with respect to any Security, every previous Security evidencing all or a portion of the same Indebtedness as that evidenced by such particular Security, and, for the purposes of this definition, any Security authenticated and delivered pursuant to Section 3.07 in lieu of a lost, destroyed or stolen Security shall be deemed to evidence the same Indebtedness as the lost, destroyed or stolen Security.

Record Date:

The term "Record Date" shall mean, with respect to any interest payable on any Security on any Interest Payment Date, any date on or before the Interest Payment Date on which the interest on such Security is determined or pursuant to Section 3.01 with respect to such Security as the record date for the payment of interest.

Redemption Date:

The term "Redemption Date" shall mean, when used with respect to any Security to be redeemed, in whole or in part, the date on which the redemption by or pursuant to this Indenture and the terms of such Security, which, in the case of a Floating Rate Security, unless otherwise specified, shall be an Interest Payment Date only.

Redemption Price:

The term “Redemption Price,” when used with respect to any Security to be redeemed, in whole or in part, shall mean the price at which such Security shall be redeemed pursuant to the terms of the applicable Security and this Indenture.

Register:

The term “Register” shall have the meaning assigned to it in Section 3.05(a).

Registrar:

The term “Registrar” shall have the meaning assigned to it in Section 3.05(a).

Responsible Officers:

The term “Responsible Officers” of the Trustee hereunder shall mean any vice president, any assistant vice president, any treasurer, any assistant trust officer, secretary, associate or any other officer associated with the corporate trust department of the Trustee customarily performing the functions similar to those performed by any of the above designated officers, and also means, with respect to a particular corporate trust, any other officer of the Trustee to whom such matter is referred because of such person’s knowledge of and familiarity with the particular matter, who shall have direct responsibility for the administration of this Indenture.

SEC:

The term “SEC” shall mean the United States Securities and Exchange Commission, as constituted from time to time.

Security:

The term “Security” or “Securities” shall have the meaning stated in the recitals and shall more particularly mean one or more certificates or other instruments duly authenticated by the Trustee and delivered pursuant to the provisions of this Indenture.

Security Custodian:

The term “Security Custodian” shall mean the custodian with respect to any Global Security appointed by the Depositary, or any successor, in writing thereunto, and shall initially be the Trustee.

Securityholder; Holder of Securities; Holder:

The term “Securityholder” or “Holder of Securities” or “Holder,” shall mean the Person in whose name Securities shall be registered in the Register kept for that purpose hereunder.

Senior Indebtedness:

The term “Senior Indebtedness” means the principal of (and premium, if any) and unpaid interest on (x) Indebtedness of the Company outstanding on the date hereof or thereafter created, incurred, assumed or guaranteed, for money borrowed other than (a) any Indebtedness of the Company which when incurred, and without respect to any election under Section 1111(b) of the Federal Bankruptcy Code, was with respect to the Company, (b) any Indebtedness of the Company to any of its Subsidiaries, (c) Indebtedness to any employee of the Company, (d) any Indebtedness of the Company, (e) Trade Payables and (f) any Indebtedness of the Company which is expressly subordinate in right of payment to any other Indebtedness of the Company, and (y) renewals, extensions, modifications and refundings of any such Indebtedness. For purposes of the foregoing and “Senior Indebtedness,” the phrase “subordinated in right of payment” means debt subordination only and not lien subordination, and (i) unsecured indebtedness shall not be deemed to be subordinated in right of payment to secured indebtedness merely by virtue of being unsecured, and (ii) junior liens, second liens and other contractual arrangements that provide for priorities among Holders of the same class of indebtedness with respect to any collateral or the proceeds of collateral shall not constitute subordination in right of payment. This definition shall be modified or superseded by a supplemental indenture.

Special Record Date:

The term “Special Record Date” shall have the meaning assigned to it in Section 3.08(b)(i).

Stated Maturity:

The term “Stated Maturity” when used with respect to any Security or any installment of interest thereon, shall mean the date of maturity of such Security or pursuant to Section 3.01 with respect to such Security as the fixed date on which the principal (or any portion thereof) of such Security or such installment of interest is due and payable.

Subsidiary:

The term “Subsidiary,” when used with respect to any Person, shall mean with respect to any Person, a corporation, partnership, joint venture, trust, limited liability company or other business entity which is required to be consolidated with such Person in accordance with GAAP.

Successor Company:

The term “Successor Company” shall have the meaning assigned to it in Section 3.06(i).

Trade Payables:

The term “Trade Payables” means accounts payable or any other Indebtedness or monetary obligations to trade creditors created in the ordinary course of business of the Company or any Subsidiary of the Company in the ordinary course of business (including guarantees thereof or instruments evidencing such liabilities).

Trust Indenture Act; TIA:

The term “Trust Indenture Act” or “TIA” shall mean the Trust Indenture Act of 1939, as amended, and the rules and regulations in effect on the date of this Indenture, except as provided in Section 14.06 and except to the extent any amendment to the Trust Indenture Act provides for application of the Trust Indenture Act as in effect on another date.

Trustee:

The term “Trustee” shall mean the Person named as the “Trustee” in the first paragraph of this Indenture until a successor Trustee becomes such with respect to one or more series of Securities pursuant to the applicable provisions of this Indenture, and thereafter “Trustees” or include each Person who is then a Trustee hereunder, and if at any time there is more than one such Person, “Trustees” as used with respect to Securities of any series shall mean the Trustee with respect to Securities of that series.

U.S. Dollars:

The term “U.S. Dollars” shall mean such currency of the United States as at the time of payment shall be legal tender for the payment of public and private debts.

U.S. Government Obligations:

The term “U.S. Government Obligations” shall have the meaning assigned to it in Section 12.03.

United States:

The term “United States” shall mean the United States of America, its territories and possessions, any State of the United States and the District of Columbia.

ARTICLE II

FORMS OF SECURITIES

Section 2.01 Terms of the Securities.

(a) The Securities of each series shall be substantially in the form set forth in a Board Resolution, a Company Order or a Supplemental Indenture supplemental hereto, and shall have such appropriate insertions, omissions, substitutions and other variations as are required by this Indenture, and may have such letters, numbers or other marks of identification or designation and such legends or endorsements as the Company may deem appropriate and as are not inconsistent with the provisions of this Indenture, or as may be required to comply with any rule or regulation made pursuant thereto or with any rule or regulation of any securities exchange on which any series of the Securities is listed or of any automated quotation system on which any such series may be quoted, or to conform to usage, all as determined by the Company in executing such Securities as conclusively evidenced by their execution of such Securities.

(b) The terms and provisions of the Securities shall constitute, and are hereby expressly made, a part of this Indenture, applicable, the Company and the Trustee, by their execution and delivery of this Indenture expressly agree to such terms and provisions thereby.

Section 2.02 Form of Trustee's Certificate of Authentication.

(a) Only such of the Securities as shall bear thereon a certificate substantially in the form of the Trustee's certificate hereinafter recited, executed by the Trustee by manual signature, shall be valid or become obligatory for any purpose or entitle the Holder to any right or benefit under this Indenture.

(b) Each Security shall be dated the date of its authentication, except that any Global Security shall be dated as of the date contemplated in Section 3.01.

(c) The form of the Trustee's certificate of authentication to be borne by the Securities shall be substantially as follows:

TRUSTEE'S CERTIFICATE OF AUTHENTICATION

This is one of the Securities of the series designated therein referred to in the within-mentioned Indenture.

Date of authentication: _____ Wells Fargo Bank, National Association, as Trustee

By: _____
Authorized Signatory

Section 2.03 Form of Trustee's Certificate of Authentication by an Authenticating Agent. If at any time there shall be an Authenticating Agent appointed with respect to any series of Securities, then the Trustee's Certificate of Authentication by such Authenticating Agent to be borne by the Securities of each such series shall be substantially as follows:

TRUSTEE'S CERTIFICATE OF AUTHENTICATION

This is one of the Securities of the series designated therein referred to in the within-mentioned Indenture.

Date of authentication: _____ Wells Fargo Bank, National Association, as Trustee
By: [NAME OF AUTHENTICATING AGENT]
as Authenticating Agent
By: _____
Authorized Signatory

ARTICLE III

THE DEBT SECURITIES

Section 3.01 Amount Unlimited; Issuable in Series. The aggregate principal amount of Securities that may be authenticated and delivered under this Indenture is unlimited. The Securities may be issued in one or more series. The title and terms on each series of Securities shall be determined by Board Resolution, Company Order or in one or more indentures supplemental hereto, prior to the issuance of Securities of a series.

(a) the title of the Securities of the series (which shall distinguish the Securities of such series from the Securities of all other series) to the extent that additional Securities of an existing series are being issued);

(b) any limit upon the aggregate principal amount of the Securities of the series that may be authenticated and delivered under this Indenture (except for Securities authenticated and delivered upon transfer of, or in exchange for, or in lieu of, other Securities of such series) (see Section 3.04, 3.06, 3.07, 4.06, or 14.05);

(c) the dates on which or periods during which the Securities of the series may be issued, and the dates on, or the range of dates, within which the principal of and premium, if any, on the Securities of such series are or may be payable or the method by which such dates shall be determined or extended;

(d) the rate or rates at which the Securities of the series shall bear interest, if any, or the method by which such rate or rates shall be determined, whether such interest shall be payable in cash or additional Securities of the same series or shall accrue and increase the amount outstanding of such series (including if such Securities were originally issued at a discount), the date or dates from which such interest shall accrue, or the method by which such date or dates shall be determined, the Interest Payment Dates on which any such interest shall be payable, the Record Dates for the determination of Holders to whom interest is payable on such Interest Payment Dates or the method by which such dates shall be determined, the right, if any, to extend or defer interest payments and the duration of such extension or deferral.

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- (e) if other than U.S. Dollars, the Foreign Currency in which Securities of the series shall be denominated or in which principal of, premium, if any, or interest on the Securities of the series shall be payable and any other terms concerning such
- (f) if the amount of payment of principal of, premium, if any, or interest on the Securities of the series may be determined by an index, formula or other method including, but not limited to, an index based on a Currency or Currencies other than that in which the Securities are stated to be payable, the manner in which such amounts shall be determined;
- (g) if the principal of, premium, if any, or interest on Securities of the series are to be payable, at the election of the Company, in a Currency other than that in which the Securities are denominated or stated to be payable without such election, the period or periods within which, and the terms and conditions upon which, such election may be made and the time and the manner of determining the exchange rate of the Currency in which the Securities are denominated or payable without such election and the Currency in which the Securities are to be payable, the election is made;
- (h) the place or places, if any, in addition to or instead of the Corporate Trust Office of the Trustee where the principal of, premium, if any, or interest on Securities of the series shall be payable, and where Securities of any series may be presented for registration of transfer, conversion, and the place or places where notices and demands to or upon the Company in respect of the Securities of such series shall be served;
- (i) the price or prices at which, the period or periods within which or the date or dates on which, and the terms and conditions upon which, Securities of the series may be redeemed, in whole or in part, at the option of the Company, if the Company is to have that option;
- (j) the obligation or right, if any, of the Company to redeem, purchase or repay Securities of the series pursuant to any sinking fund, amortization or analogous provisions or at the option of a Holder thereof and the price or prices at which, the period or periods within which or dates on which, the Currency or Currencies in which and the terms and conditions upon which Securities of the series shall be redeemed, purchased or repaid, in whole or in part, pursuant to such obligation;
- (k) if other than denominations of \$2,000 and any integral multiple of \$1,000 in excess thereof, the denominations in which the Securities of the series shall be issuable;
- (l) if other than the principal amount thereof, the portion of the principal amount of the Securities of the series which shall be payable upon declaration of acceleration of the Maturity thereof pursuant to Section 7.02;
- (m) the guarantors, if any, of the Securities of the series, and the extent of the guarantees (including provisions relating to the subordination, and the release of the guarantors), if any, and any additions or changes to permit or facilitate guarantees of such Securities;

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- (n) whether the Securities of the series are to be issued as Original Issue Discount Securities and the amount of discount Securities may be issued;
- (o) if the provisions of Article XII hereof shall not be applicable with respect to the Securities of such series; or any addition to or change in the provisions of Article XII and, if the Securities of any series are payable in a Currency other than U.S. Dollars, the Currency of such Securities or government obligations to be deposited with the Trustee pursuant to Section 12.08;
- (p) whether the Securities of the series are to be issued in whole or in part in the form of one or more Global Securities and the Depositary for such Global Security or Global Securities, and the terms and conditions, if any, upon which interests in such Global Securities may be exchanged in whole or in part for the individual securities represented thereby in definitive form registered in the names of Persons other than such Depositary or a nominee or nominees thereof ("Individual Securities");
- (q) the date as of which any Global Security of the series shall be dated if other than the original issuance of the first Security of the series to be issued;
- (r) the form or forms of the Securities of the series including such legends as may be required by applicable law;
- (s) if the Securities of the series are to be convertible into or exchangeable for any securities or property of any Person (other than the Company), the terms and conditions upon which such Securities will be so convertible or exchangeable, and any additions or changes to or facilitate such conversion or exchange;
- (t) whether the Securities of such series are subject to subordination and the terms of such subordination (for avoidance of doubt, the terms of Section XV shall not apply to the Securities of any series unless the terms of such series expressly state it applies);
- (u) whether the Securities of such series are to be secured and the terms of such security;
- (v) any restriction or condition on the transferability of the Securities of such series;
- (w) any addition or change in the provisions related to compensation and reimbursement of the Trustee which applies to the Securities of such series;
- (x) any addition or change in the provisions related to supplemental indentures set forth in Sections 14.01, 14.02 and 14.03 to Securities of such series;
- (y) provisions, if any, granting special rights to Holders upon the occurrence of specified events;
- (z) any addition to or change in the Events of Default which applies to any Securities of the series and any change in the provisions set forth in Article VII which applies to Securities of the series;

(aa) any addition to or change in the covenants set forth in Article VI which applies to Securities of the series

(bb) any other terms of the Securities of such series (which terms shall not be inconsistent with the provisions of the Trust Agreement), amend, supplement or delete any of the terms of this Indenture with respect to such series).

All Securities of any one series shall be substantially identical, except as to denomination and except as may otherwise be provided by a Board Resolution, a Company Order or in one or more indentures supplemental hereto.

Unless otherwise specified with respect to the Securities of any series pursuant to this Section 3.01, the Company may, at its option from time to time, issue additional Securities of any series of Securities previously issued under this Indenture which together shall constitute a series of Securities under this Indenture.

Section 3.02 Denominations. In the absence of any specification pursuant to Section 3.01 with respect to Securities of any series, such series shall be issuable only as Securities in denominations of \$2,000 and any integral multiple of \$1,000 in excess thereof, and only in U.S. Dollars.

Section 3.03 Execution, Authentication, Delivery and Dating.

(a) The Securities shall be executed in the name and on behalf of the Company by the manual or facsimile signature of any Person whose signature is on a Security no longer holds that office at the time the Security is authenticated and delivered, the Security shall be valid.

(b) At any time and from time to time after the execution and delivery of this Indenture, the Company may deliver Securities executed by the Company to the Trustee for authentication, together with a Company Order for the authentication and delivery of such Securities required pursuant to Section 3.01, a supplemental indenture or Company Order setting forth the terms of the Securities of a series. Thereupon authenticate and deliver such Securities without any further action by the Company. The Company Order shall specify the Securities to be authenticated and the date on which the original issue of Securities is to be authenticated.

(c) In authenticating the first Securities of any series and accepting the additional responsibilities under this Indenture, the Securities the Trustee shall receive, and (subject to Section 11.02) shall be fully protected in relying upon an Officer's Certificate and Counsel, each prepared in accordance with Section 16.01 stating that the conditions precedent, if any, provided for in the Indenture have been satisfied.

(d) The Trustee shall have the right to decline to authenticate and deliver the Securities under this Section 3.03 if the issuance of such Securities pursuant to this Indenture will affect the Trustee's own rights, duties or immunities under the Securities and this Indenture or other applicable law which is not reasonably acceptable to the Trustee.

(e) Each Security shall be dated the date of its authentication, except as otherwise provided pursuant to Section 3.01 with respect to Securities of such series.

(f) Notwithstanding the provisions of Section 3.01 and of this Section 3.03, if all of the Securities of any series are to be issued at the same time, then the documents required to be delivered pursuant to this Section 3.03 must be delivered only once prior to the issuance and delivery of the first Security of such series.

(g) If the Company shall establish pursuant to Section 3.01 that the Securities of a series are to be issued in whole or in part as one or more Global Securities, then the Company shall execute and the Trustee shall authenticate and deliver one or more Global Securities which represent an aggregate amount equal to the aggregate principal amount of the Outstanding Securities of such series to be represented by such Global Securities, (ii) shall be registered, in the name of the Depositary for such Global Security or Global Securities or the nominee of such Depositary, (iii) shall be delivered by the Trustee to such Depositary or pursuant to such Depositary's instruction and (iv) shall bear a legend substantially in the following effect:

“THIS SECURITY IS A GLOBAL SECURITY WITHIN THE MEANING OF THE INDENTURE HEREINAFTER REFERRED TO AS THE INDENTURE, REGISTERED IN THE NAME OF THE DEPOSITARY OR A NOMINEE OF THE DEPOSITARY, WHICH SHALL BE THE ONLY EVIDENCE OF THE COMPANY, THE TRUSTEE AND ANY AGENT THEREOF AS OWNER AND HOLDER OF THIS SECURITY FOR ALL PURPOSES. UNLESS THIS CERTIFICATE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITARY TRUST COMPANY, INC. (“DTC”) TO THE COMPANY OR ITS AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE OR PAYMENT, THIS CERTIFICATE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT HEREON IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE OR OTHER USE OF THIS SECURITY IN WHOLE OR IN PART, OR ANY INTEREST HEREIN, WITHOUT THE REGISTRATION OF SUCH TRANSFER, PLEDGE OR OTHER USE WITH DTC OR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL SINCE THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

TRANSFERS OF THIS GLOBAL SECURITY SHALL BE LIMITED TO TRANSFERS IN WHOLE, BUT NOT IN PART, BY THE COMPANY TO THE DEPOSITARY TO A NOMINEE OF THE DEPOSITARY, OR BY A NOMINEE OF THE DEPOSITARY TO THE DEPOSITARY OR TO ANOTHER NOMINEE OF THE DEPOSITARY, OR BY THE DEPOSITARY OR ANY SUCH NOMINEE TO A SUCCESSOR DEPOSITARY OR A NOMINEE OF SUCH SUCCESSOR DEPOSITARY.”

The aggregate principal amount of each Global Security may from time to time be increased or decreased by adjustments made by the Security Custodian, as provided in this Indenture.

(h) Each Depositary designated pursuant to Section 3.01 for a Global Security in registered form must, at the time of its appointment and at all times while it serves as such Depositary, be a clearing agency registered under the Exchange Act and any other applicable statute.

(i) Members of, or participants in, the Depositary ("Members") shall have no rights under this Indenture with respect to any Global Security held on their behalf by the Depositary or by the Security Custodian under such Global Security, and the Depositary shall not be deemed to be the owner of such Global Security. The Company, the Trustee, the Paying Agent and the Registrar and any of their agents as the absolute owner of such Global Security for all purposes whatsoever. Notwithstanding the foregoing, nothing herein shall prevent the Company, the Trustee, the Paying Agent or the Registrar or their agents from giving effect to any written certification, proxy or other authorization furnished by the Depositary or impair, as between the Depositary and its Members, the operation of customary practices of the Depositary governing the exercise of the rights of an owner of a beneficial interest in a Global Security. The Holder of a Global Security may grant proxies and otherwise authorize any Person, including Members and Participants, to exercise its interests through Members, to take any action that a Holder is entitled to take under this Indenture or the Securities Laws.

(j) No Security shall be entitled to any benefit under this Indenture or be valid or obligatory for any purpose unless the Security is accompanied by a certificate of authentication substantially in one of the forms provided for herein duly executed by the Trustee or by an Authorized Signatory by manual or facsimile signature of an authorized signatory of the Trustee or Authenticating Agent, and such certificate upon any production shall be conclusive evidence, and the only evidence, that such Security has been duly authenticated and delivered hereunder and is entitled to the benefits of this Indenture.

Section 3.04 Temporary Securities.

(a) Pending the preparation of definitive Securities of any series, the Company may execute, and upon Company Order may deliver, temporary Securities that are printed, lithographed, typewritten, mimeographed or otherwise reproduced, in the same denominations, substantially of the tenor of the definitive Securities in lieu of which they are issued, in registered form and with such omissions, insertions, omissions, substitutions and other variations as the officers executing such Securities may determine, as conclusively evidence of the execution of such Securities. Any such temporary Security may be in the form of one or more Global Securities, representing all or part of the Outstanding Securities of such series. Every such temporary Security shall be executed by the Company and shall be authenticated and delivered by the Trustee upon the same conditions and in substantially the same manner, and with the same effect, as the definitive Security or Securities in lieu of which it is issued.

(b) If temporary Securities of any series are issued, the Company will cause definitive Securities of such series to be prepared without unreasonable delay. After the preparation of definitive Securities of such series, the temporary Securities of such series shall be exchangeable for definitive Securities of such series upon surrender of such temporary Securities at the office or agency of the Company in a Place of Payment of such series, without charge to the Holder. Upon surrender for cancellation of any one or more temporary Securities of any series, the Company and the Trustee shall authenticate and deliver in exchange therefor a like principal amount of definitive Securities of the same series and denominations and of like tenor. Until so exchanged, the temporary Securities of any series shall in all respects be entitled to the same treatment as definitive Securities of such series.

(c) Upon any exchange of a portion of a temporary Global Security for a definitive Global Security or for the Indivisible Global Security represented thereby pursuant to this Section 3.04 or Section 3.06, the temporary Global Security shall be endorsed by the Trustee to reflect the exchange of the principal amount evidenced thereby, whereupon the principal amount of such temporary Global Security shall be reduced for the amount so exchanged and endorsed.

Section 3.05 Registrar.

(a) The Company will keep, at an office or agency to be maintained by it in a Place of Payment where Securities may be registered or presented and surrendered for registration of transfer or of exchange, and where Securities of any series that are exchangeable may be surrendered for conversion or exchange, as applicable (the “Registrar”), a security register for the registration of transfer or of exchange of the Securities (the registers maintained in such office and in any other office or agency of the Company being herein sometimes collectively referred to as the “Register”), as in this Indenture provided, which Register shall at all times be open for inspection by the Trustee. Such Register shall be in written form or in any other form capable of being converted into written form at any reasonable time. The Company may have one or more co-Registrars; the term “Registrar” includes any co-registrar.

(b) The Company shall enter into an appropriate agency agreement with any Registrar or co-Registrar not a party to this Indenture. Such agreement shall implement the provisions of this Indenture that relate to such agent. The Company shall notify the Trustee of the name of each such agent. If the Company fails to maintain a Registrar for any series, the Trustee shall act as such and shall be entitled to receive compensation therefor pursuant to Section 11.01. The Company or any Affiliate thereof may act as Registrar, co-Registrar or trustee.

(c) The Company hereby appoints the Trustee at its Corporate Trust Office as Registrar in connection with the Securities of this Indenture, until such time as another Person is appointed as such.

Section 3.06 Transfer and Exchange.

(a) Transfer.

(i) Upon surrender for registration of transfer of any Security of any series at the Registrar the Company shall cause the Trustee or any Authenticating Agent shall authenticate and deliver, in the name of the designated transferee, one or more new Securities of the same series for like aggregate principal amount of any authorized denomination or denominations. The transfer of any Security shall be made as against the Company or the Trustee unless registered at the Registrar at the request of the Holder, or at the request of his, her or its authorized agent, authorized in writing.

(ii) Notwithstanding any other provision of this Section, unless and until it is exchanged in whole or in part for Securities represented thereby, a Global Security representing all or a portion of the Securities of a series may not be transferred by the Depositary for such series to a nominee of such Depositary or by a nominee of such Depositary to such Depositary or a nominee of such Depositary or by such Depositary or any such nominee to a successor Depositary for such series or a nominee of such successor Depositary.

(b) Exchange.

(i) At the option of the Holder, Securities of any series (other than a Global Security, except as set forth below) may be surrendered for exchange for other Securities of the same series for like aggregate principal amount of any authorized denomination or denominations, upon the terms and conditions set forth below. Securities to be exchanged at the Registrar.

(ii) Whenever any Securities are so surrendered for exchange, the Company shall execute, and the Trustee or Authenticating Agent shall authenticate and deliver, the Securities that the Holder making the exchange is entitled to receive.

(c) Exchange of Global Securities for Individual Securities. Except as provided below, owners of beneficial interests in Global Securities will not be entitled to receive Individual Securities.

(i) Individual Securities shall be issued to all owners of beneficial interests in a Global Security in exchange for such Global Security (A) at any time the Depositary for the Securities of a series notifies the Company that it is unwilling or unable to continue as Depositary for the Securities of such series or if at any time the Depositary for the Securities of such series shall no longer be eligible under Section 3.05 of the Trust Agreement, or (B) in each case, a successor Depositary is not appointed by the Company within 90 days of such notice, or (B) the Company executes an Order of Exchange, the Trustee and the Registrar an Company Order stating that such Global Security shall be so exchangeable.

In connection with the exchange of an entire Global Security for Individual Securities pursuant to this subsection (c), such Global Security shall be deemed to be surrendered to the Trustee for cancellation, and the Company shall execute, and the Trustee, upon receipt of a Company Order for the authentication and delivery of Individual Securities of such series, will authenticate and deliver to each beneficial owner of such Global Security by the Depositary in exchange for its beneficial interest in such Global Security, an equal aggregate principal amount of Individual Securities of such series and authorized denominations.

(ii) The owner of a beneficial interest in a Global Security will be entitled to receive an Individual Security in exchange for its beneficial interest if an Event of Default has occurred and is continuing. Upon receipt by the Security Custodian and Registrar of instructions from the Holder of a Global Security directing the Security Custodian and Registrar to (x) issue one or more Individual Securities in exchange for its beneficial interest in such Global Security and (y) debit or cause to be debited an equivalent amount of beneficial interest in such Global Security, subject to the rules and regulations of the Depositary:

(A) the Security Custodian and Registrar shall notify the Company and the Trustee of such instructions and the owner and amount of such beneficial interest in such Global Security;

(B) the Company shall promptly execute and the Trustee, upon receipt of a Company Order for the authentication and delivery of Individual Securities of such series, shall authenticate and deliver to such beneficial owner Individual Securities of such series and an equivalent amount to such beneficial interest in such Global Security; and

(C) the Security Custodian and Registrar shall decrease such Global Security by such amount in accordance with the foregoing. In the event that the Individual Securities are not issued to each such beneficial owner promptly after the receipt of a request from the Holder of a Global Security to issue such Individual Securities, the Company expressly acknowledges that it waives the right of any Holder to pursue a remedy pursuant to Section 7.07 hereof, the right of any beneficial Holder of Securities to pursue a remedy with respect to the portion of the Global Security that represents such beneficial Holder's Securities as if such Individual Securities had been issued.

(iii) If specified by the Company pursuant to Section 3.01 with respect to a series of Securities, the Depositary may, at its option, accept the surrender of such Securities in exchange for such series of Securities in whole or in part for Individual Securities of such series and authorized denominations on such terms as are acceptable to the Company and such Depositary. Thereupon, the Company shall execute, and the Trustee shall authenticate and deliver, without service charge,

(A) to each Person specified by such Depositary a new Individual Security or new Individual Securities, of any authorized denomination as requested by such Person in aggregate principal amount equal to and in exchange for the principal amount of the surrendered Individual Securities and the Person's beneficial interest in the Global Security; and

(B) to such Depositary a new Global Security in a denomination equal to the difference, if any, between the principal amount of the surrendered Global Security and the aggregate principal amount of Individual Securities delivered to the Depositary;

(iv) In any exchange provided for in clauses (i) through (iii), the Company will execute and the Trustee will authenticate the surrendered Individual Securities in registered form in authorized denominations.

(v) Upon the exchange in full of a Global Security for Individual Securities, such Global Security shall be canceled. Individual Securities issued in exchange for a Global Security pursuant to this Section shall be registered in such names and in such authorized denominations as the Depositary for such Global Security, pursuant to instructions from its direct or indirect participants or the Company, shall instruct the Trustee. The Trustee shall deliver such Securities to the Persons in whose names such Securities are so registered.

(d) All Securities issued upon any registration of transfer or exchange of Securities shall be valid obligations of the Company, representing the same debt, and entitled to the same benefits under this Indenture, as the Securities surrendered for such registration or exchange.

(e) Every Security presented or surrendered for registration of transfer, or for exchange or payment shall (if so required by the Trustee or the Registrar) be duly endorsed, or be accompanied by a written instrument or instruments of transfer in form satisfactory to the Trustee and the Registrar, duly executed by the Holder thereof or by his, her or its attorney duly authorized in writing.

(f) No service charge will be made for any registration of transfer or exchange of Securities. The Company or the Trustee shall, however, make payment of a sum sufficient to cover any tax, assessment or other governmental charge that may be imposed in connection with any transfer or exchange of Securities, other than those expressly provided in this Indenture to be made at the Company's own expense or charge to the Holders.

(c) Upon the issuance of any new Security under this Section, the Company may require the payment of a sum sufficient to pay any tax or other governmental charge that may be imposed in respect thereto and any other expenses (including the fees and expenses of the Company) in connection therewith.

(d) Every new Security of any series issued pursuant to this Section shall constitute an original additional contractual obligation of the Company, whether or not the destroyed, lost or stolen Security shall be at any time enforceable by anyone, and shall be entitled to all the rights and remedies of the original Security, and shall be treated as such for all purposes of the Indenture equally and proportionately with any and all other Securities of that series duly issued hereunder.

(e) The provisions of this Section are exclusive and shall preclude (to the extent lawful) all other rights and remedies of the Holder in respect of the replacement or payment of mutilated, destroyed, lost or stolen Securities.

Section 3.08 Payment of Interest; Interest Rights Preserved.

(a) Interest on any Security that is payable and is punctually paid or duly provided for on any Interest Payment Date shall be paid to the Person in whose name such Security (or one or more Predecessor Securities) is registered at the close of business on the Record Date for such Interest notwithstanding the cancellation of such Security upon any transfer or exchange subsequent to the Record Date. Payment of interest shall be made at the Corporate Trust Office (except as otherwise specified pursuant to Section 3.01) or, at the option of the Company, by check payable to the address of the Person entitled thereto as such address shall appear in the Register or, in accordance with arrangements satisfactory to the Company, by transfer to an account designated by the Holder.

(b) Any interest on any Security that is payable but is not punctually paid or duly provided for on any Interest Payment Date shall be "Defaulted Interest" and shall forthwith cease to be payable to the Holder on the relevant Record Date by virtue of his, her or its having such Security. Such Defaulted Interest may be paid by the Company, at its election in each case, as provided in clause (i) or (ii) below.

(i) The Company may elect to make payment of any Defaulted Interest to the Persons in whose names such Security (or one or more respective Predecessor Securities) are registered at the close of business on a special record date for the payment of such Defaulted Interest ("Special Record Date"), which shall be fixed in the following manner. The Company shall notify the Trustee in writing of the amount of Defaulted Interest proposed to be paid on each such Security and the date of the proposed payment, and at the same time the Company shall deposit with the Trustee an amount of money equal to the aggregate amount proposed to be paid in respect of such Defaulted Interest or shall make such other arrangements satisfactory to the Trustee for such deposit prior to the date of the proposed payment, such money when deposited to be held in trust for the benefit of the Persons entitled to such Defaulted Interest as in this clause provided. Thereupon the Trustee shall fix a Special Record Date for the payment of such Defaulted Interest which shall be not more than 15 calendar days and not less than

10 calendar days prior to the date of the proposed payment and not less than 10 calendar days after the receipt by the Trustee of the proposed payment. The Trustee shall promptly notify the Company of such Special Record Date and, in the name and at the address of the Company, shall cause notice of the proposed payment of such Defaulted Interest and the Special Record Date therefor to be mailed by first-class postage prepaid, to the Holders of such Securities at their addresses as they appear in the Register, not less than 10 calendar days prior to the Special Record Date. Notice of the proposed payment of such Defaulted Interest and the Special Record Date therefor having been so given, aforesaid, such Defaulted Interest shall be paid to the Persons in whose names such Securities (or their respective Predecessors) are registered at the close of business on such Special Record Date and shall no longer be payable pursuant to the following provisions:

(ii) The Company may make payment of any Defaulted Interest on Securities in any other lawful manner not inconsistent with the requirements of any securities exchange on which such Securities may be listed, and upon such notice as may be required by such exchange, after notice given by the Company to the Trustee of the proposed payment pursuant to this clause, such manner of payment shall be deemed practicable by the Trustee.

(c) Subject to the provisions set forth herein relating to Record Dates, each Security delivered pursuant to any provision of this Indenture in exchange or substitution for, or upon registration of transfer of, any other Security shall carry all the rights to interest accrued on such Security, which were carried by such other Security.

Section 3.09 Cancellation. Unless otherwise specified pursuant to Section 3.01 for Securities of any series, all Securities surrendered to the Trustee for redemption, registration of transfer or exchange or credit against any sinking fund or otherwise shall, if surrendered to any Person other than the Company, be delivered to the Trustee for cancellation and shall be promptly canceled by it and, if surrendered to the Trustee, shall be promptly canceled by the Trustee. The Company may at any time deliver to the Trustee for cancellation any Securities previously authenticated and delivered hereunder that have been so surrendered, have acquired in any manner whatsoever, and all Securities so delivered shall be promptly canceled by the Trustee. No Securities shall be delivered in lieu of or in exchange for any Securities canceled as provided in this Section, except as expressly permitted by this Indenture. The Trustee shall dispose of all canceled Securities held by it in accordance with its then customary procedures and deliver evidence of such disposition to the Company upon its written request therefor. The acquisition of any Securities by the Company shall not operate as a redemption or satisfaction of such Securities represented thereby unless and until such Securities are surrendered to the Trustee for cancellation.

Section 3.10 Computation of Interest. Except as otherwise specified pursuant to Section 3.01 for Securities of any series, interest on such Securities of each series shall be computed on the basis of a 360-day year of twelve 30-day months.

Section 3.11 Currency of Payments in Respect of Securities.

(a) Except as otherwise specified pursuant to Section 3.01 for Securities of any series, payment of the principal of and interest on Securities of such series will be made in U.S. Dollars.

(b) For purposes of any provision of the Indenture where the Holders of Outstanding Securities may perform an action specified percentage of the Outstanding Securities of all series perform such action and for purposes of any decision or determination amounts due and unpaid for the principal of and premium, if any, and interest on the Securities of all series in respect of which m disbursed ratably, the principal of and premium, if any, and interest on the Outstanding Securities denominated in a Foreign Currency in U.S. Dollars based upon exchange rates, determined as specified pursuant to Section 3.01 for Securities of such series, as of the date whether the Holders entitled to perform such action have performed it or as of the date of such decision or determination by the Trustee be.

(c) Any decision or determination to be made regarding exchange rates shall be made by an agent appointed by the Company that such agent shall accept such appointment in writing and the terms of such appointment shall, in the opinion of the Company at appointment, require such agent to make such determination by a method consistent with the method provided pursuant to Section 3.01 of such decision or determination. All decisions and determinations of such agent regarding exchange rates shall, in the absence of a conclusive for all purposes and irrevocably binding upon the Company, the Trustee and all Holders of the Securities.

Section 3.12 Judgments. The Company may provide pursuant to Section 3.01 for Securities of any series that (a) the obligation of the Company to pay the principal of, premium, if any, and interest on the Securities of any series in a Foreign Currency or U.S. Dollars (the "Designated Currency") as may be specified pursuant to Section 3.01 is of the essence and agrees that, to the fullest extent possible under applicable law, in respect of such Securities shall be given in the Designated Currency; (b) the obligation of the Company to make payments in the Designated Currency of the principal of and premium, if any, and interest on such Securities shall, notwithstanding any payment in any other Currency (whether by judgment or otherwise), be discharged only to the extent of the amount in the Designated Currency that the Holder receiving such payment in accordance with normal banking procedures, purchase with the sum paid in such other Currency (after any premium and cost of exchange) on the next business day in the country of issue of the Designated Currency or in the international banking community (in the case of a company not having a branch in such country) immediately following the day on which such Holder receives such payment; (c) if the amount in the Designated Currency that may be paid for any reason falls short of the amount originally due, the Company shall pay such additional amounts as may be necessary to complete the payment; and (d) any obligation of the Company not discharged by such payment shall be due as a separate and independent obligation of the Company, discharged as provided herein, shall continue in full force and effect.

Section 3.13 CUSIP Numbers. The Company in issuing any Securities may use CUSIP, ISIN or other similar numbers, if then and thereafter with respect to such series, the Trustee may use such numbers in any notice of redemption or exchange with respect to such series; provided that any such notice may state that no representation is made as to the correctness of such numbers either as printed on the Securities or contained in any notice of a redemption and that reliance may be placed only on the other identification numbers printed on the Securities; and redemption shall not be affected by any defect in or omission of such numbers. The Company will promptly notify the Trustee in writing of any change in the CUSIP, ISIN or other similar numbers.

ARTICLE IV

REDEMPTION OF SECURITIES

Section 4.01 Applicability of Right of Redemption. Redemption of Securities (other than pursuant to a sinking fund, amortization or other provision) permitted by the terms of any series of Securities shall be made (except as otherwise specified pursuant to Section 3.01 for any series) in accordance with this Article; provided, however, that if any such terms of a series of Securities shall conflict with any provision of this Article, the terms of such series shall govern.

Section 4.02 Selection of Securities to be Redeemed.

(a) If the Company shall at any time elect to redeem all or any portion of the Securities of a series then Outstanding, it shall, not less than 60 days prior to the Redemption Date fixed by the Company (unless a shorter period shall be satisfactory to the Trustee) notify the Trustee of the Redemption Date and of the principal amount of Securities to be redeemed, and thereupon the Trustee shall select, by lot or in such other manner as the Trustee shall deem appropriate and which may provide for the selection for redemption of a portion of the principal amount of any Security of such series; provided that the unredeemed portion of the principal amount of any Security shall be in an authorized denomination (which shall not be less than the minimum authorized denomination) for such Security. In any case where more than one Security of such series is registered in the name of the Company, the Trustee may treat the aggregate principal amount so registered as if it were represented by one Security of such series. The Trustee shall, if practicable, notify the Company in writing of the Securities and portions of Securities so selected.

(b) For all purposes of this Indenture, unless the context otherwise requires, all provisions relating to the redemption of Securities shall relate, in the case of any Security redeemed or to be redeemed only in part, to the portion of the principal amount of such Security that is to be redeemed. If the Company shall so direct, Securities registered in the name of the Company, any Affiliate or any Subsidiary of the Company shall be included in the Securities selected for redemption.

Section 4.03 Notice of Redemption.

(a) Notice of redemption shall be given by the Company or, at the Company's request at least 5 Business Days (unless such notice shall be satisfactory to the Trustee) prior to the delivery of the Notice of Redemption to the Holders, by the Trustee in the name and as the agent of the Company, not less than 30 nor more than 60 days prior to the Redemption Date, to the Holders of Securities of any series to be redeemed in whole or in part pursuant to this Article, in the manner provided in Section 16.04. Any notice so given shall be conclusively presumed to have been given to the Holder whether or not the Holder receives such notice. Failure to give such notice, or any defect in such notice to the Holder of any Security designated for redemption, in whole or in part, shall not affect the sufficiency of any notice of redemption with respect to the Holder of any other Security of such series.

(b) All notices of redemption shall identify the Securities to be redeemed (including CUSIP, ISIN or other similar number) and shall state, along with the statement in Section 3.13) and shall state:

(i) such election by the Company to redeem Securities of such series pursuant to provisions contained in this Indenture or in the Securities of such series or a supplemental indenture establishing such series, if such be the case;

(ii) the Redemption Date and whether the redemption is contingent upon any transaction or event and, if such redemption is contingent to the satisfaction of one or more conditions precedent, such notice shall describe each such condition, and if applicable, shall state the date on which the Company's discretion, the Redemption Date may be delayed until such time as any or all such conditions shall be satisfied or the Redemption Date may not occur and such notice may be rescinded in the event that any or all such conditions shall not have been satisfied on the Redemption Date, or by the Redemption Date as so delayed;

(iii) the Redemption Price;

(iv) if less than all Outstanding Securities of any series are to be redeemed, the identification (and, in the case of partial redemption, the principal amounts) of the Securities of such series to be redeemed;

(v) that on the Redemption Date the Redemption Price will become due and payable upon each such Security to be redeemed and that, if applicable, interest thereon shall cease to accrue on and after said date;

(vi) the Place or Places of Payment where such Securities are to be surrendered for payment of the Redemption Price;

(vii) that the redemption is for a sinking fund, if such is the case.

Section 4.04 Deposit of Redemption Price. On or prior to 11:00 a.m., New York City time, on the Redemption Date for any Company shall deposit with the Trustee or with a Paying Agent (or, if the Company is acting as its own Paying Agent, segregate and provided in Section 6.03) an amount of money in the Currency in which such Securities are denominated (except as provided pursuant sufficient to pay the Redemption Price of such Securities or any portions thereof that are to be redeemed on that date.

Section 4.05 Securities Payable on Redemption Date. Notice of redemption having been given as aforesaid, any Securities so shall, on the Redemption Date, become due and payable at the Redemption Price and from and after such date (unless the Company payment of the Redemption Price) such Securities shall cease to bear interest. Upon surrender of any such Security for redemption in said notice, such Security shall be paid by the Company at the Redemption Price; provided, however, that (unless otherwise provided in Section 3.01) installments of interest that have a Stated Maturity on or prior to the Redemption Date for such Securities shall be payable in accordance with the terms of such Securities and the provisions of Section 3.08.

If any Security called for redemption shall not be so paid upon surrender thereof for redemption, the principal thereof and premium thereon shall, until paid, bear interest from the Redemption Date at the rate borne by or prescribed in such Securities.

Section 4.06 Securities Redeemed in Part. Any Security that is to be redeemed only in part shall be surrendered at the Corporate Trust Office or such other office or agency of the Company as is specified in the notice of redemption with, if the Company, the Registrar or the Trustee shall execute, endorsement by, or a written instrument of transfer in form satisfactory to the Company, the Registrar and the Trustee duly executed by or his, her or its attorney duly authorized in writing, and the Company shall execute, and the Trustee shall authenticate and deliver to the Holder of such Security without service charge, a new Security or Securities of the same series, of like tenor and form, of any authorized denomination requested by such Holder in aggregate principal amount equal to and in exchange for the unredeemed portion of the principal of the Security so surrendered; except that if a Global Security is so surrendered, the Company shall execute, and the Trustee shall authenticate and deliver to the Holder of such Global Security, without service charge, a new Global Security in a denomination equal to and in exchange for the unredeemed portion of the principal of the Global Security so surrendered. In the case of a Security providing appropriate space for such notation, the Holder thereof, the Trustee, in lieu of delivering a new Security or Securities as aforesaid, may make a notation on such Security of the unredeemed portion thereof.

ARTICLE V

SINKING FUNDS

Section 5.01 Applicability of Sinking Fund.

(a) Redemption of Securities permitted or required pursuant to a sinking fund for the retirement of Securities of a series shall be made in accordance with such terms of such series of Securities and this Article, except as otherwise provided in Article IV for Securities of such series, provided, however, that if any such terms of a series of Securities shall conflict with any provision of this Article, the terms of such series shall govern.

(b) The minimum amount of any sinking fund payment provided for by the terms of Securities of any series is herein “Mandatory Sinking Fund Payment,” and any payment in excess of such minimum amount provided for by the terms of Securities of any series is referred to as an “Optional Sinking Fund Payment.” If provided for by the terms of Securities of any series, the cash amount of any Mandatory Sinking Fund Payment may be subject to reduction as provided in Section 5.02.

Section 5.02 Mandatory Sinking Fund Obligation. The Company may, at its option, satisfy any Mandatory Sinking Fund Payment obligation in whole or in part, with respect to a particular series of Securities by (a) delivering to the Trustee Securities of such series in transferable form purchased or otherwise acquired by the Company or redeemed at the election of the Company pursuant to Article IV or (b) receiving from the Trustee Securities of such series (not previously so credited) acquired by the Company and theretofore delivered to the Trustee. The Trustee shall credit the Mandatory Sinking Fund Payment obligation with an amount equal to the Redemption Price specified in such Securities for redemption through the sinking fund and the amount of such Mandatory Sinking Fund Payment shall be reduced accordingly. If the Company shall elect to satisfy its Mandatory Sinking Fund Payment obligation, it shall deliver to the Trustee not less than 45 days prior to the relevant sinking fund payment date an Officer’s Certificate, which shall designate the Securities (and portions thereof, if any) so delivered or credited and which shall be in transferable form. In case of the failure of the Company, at or before the time such sinking fund payment is due, such notice and deliver such Securities the Mandatory Sinking Fund Payment obligation shall be paid entirely in money.

Section 5.03 Optional Redemption at Sinking Fund Redemption Price. In addition to the sinking fund requirements of Section 5.02, if any, provided for by the terms of a particular series of Securities, the Company may, at its option, make an Optional Sinking Fund Payment with respect to such Securities. Unless otherwise provided by such terms, (a) to the extent that the right of the Company to make such Optional Sinking Fund Payment shall not be exercised in any year, it shall not be cumulative or carried forward to any subsequent year, and (b) such optional payment shall operate to reduce the amount of any Mandatory Sinking Fund Payment obligation as to Securities of the same series. If the Company exercises its right to make such optional payment in any year it shall deliver to the Trustee not less than 45 days prior to the relevant sinking fund payment date an Officer’s Certificate stating that the Company will exercise such optional right, and specifying the amount which the Company will pay at the next succeeding sinking fund payment date. Such Officer’s Certificate shall also state that no Event of Default has occurred and no

Section 5.04 Application of Sinking Fund Payment.

(a) If the sinking fund payment or payments made in funds pursuant to either Section 5.02 or 5.03 with respect to a particular series of Securities plus any unused balance of any preceding sinking fund payments made in funds with respect to such series shall exceed the sum if the Company shall so request, or such equivalent sum for Securities denominated other than in U.S. Dollars), it shall be applied on the sinking fund payment date next following the date of such payment, unless the date of such payment shall be a sinking fund payment date, in which case such payment shall be applied on such sinking fund payment date, to the redemption of Securities of such series at the redemption date pursuant to Section 4.03(b). The Trustee shall select, in the manner provided in Section 4.02, for redemption on such sinking fund payment date, a sufficient principal amount of Securities of such series to absorb said funds, as nearly as may be, and shall, at the expense and in the name of the Company, thereupon cause notice of redemption of the Securities to be given in substantially the manner provided in Section 4.03(a) of Securities in part at the option of the Company, except that the notice of redemption shall also state that the Securities are being redeemed from the sinking fund. Any sinking fund moneys not so applied by the Trustee to the redemption of Securities of such series shall be added to the sinking fund payment received in funds by the Trustee and, together with such payment, shall be applied in accordance with the provisions of Section 5.04. Any and all sinking fund moneys held by the Trustee on the last sinking fund payment date with respect to Securities of such series, whether such moneys be payment or redemption of particular Securities of such series, shall be applied by the Trustee to the payment of the principal of the Securities of such series at Maturity.

(b) On or prior to each sinking fund payment date, the Company shall pay to the Trustee a sum equal to all interest on the principal of the Securities including the date fixed for redemption on Securities to be redeemed on such sinking fund payment date pursuant to this Section 5.04.

(c) The Trustee shall not redeem any Securities of a series with sinking fund moneys or mail any notice of redemption of any Securities of such series by operation of the sinking fund during the continuance of a Default in payment of interest on any Securities of such series or a Default (other than an Event of Default occurring as a consequence of this paragraph) of which a Responsible Officer of the Trustee has knowledge, except that if the notice of redemption of any Securities of such series shall theretofore have been mailed in accordance with the provisions hereof, the Trustee shall redeem such Securities if funds sufficient for that purpose shall be deposited with the Trustee in accordance with the provisions of this Article. Except as aforesaid, any moneys in the sinking fund at the time any such Default or Event of Default shall occur and any moneys paid into the sinking fund shall, during the continuance of such Default or Event of Default, be held as security for the payment of the principal of the Securities of such series; provided, however, that in case such Default or Event of Default shall have been cured or waived as provided herein, such moneys shall thereafter be applied on the next sinking fund payment date on which such moneys are required to be applied pursuant to the provisions of Section 5.04.

ARTICLE VI
PARTICULAR COVENANTS OF THE COMPANY

The Company hereby covenants and agrees as follows:

Section 6.01 Payments of Securities. The Company will duly and punctually pay the principal of and premium, if any, on each and the interest which shall have accrued thereon, at the dates and place and in the manner provided in the Securities and in the

Section 6.02 Paying Agent.

(a) The Company will maintain in each Place of Payment for any series of Securities an office or agency where Securities may be presented or surrendered for payment, where Securities of such series may be surrendered for registration of transfer or exchange and demands to or upon the Company in respect of the Securities and this Indenture may be served (the "Paying Agent"). The Company shall give prompt written notice to the Trustee of the location, and any change in the location, of such office or agency. If at any time the Company shall fail to furnish the Trustee with the address thereof, such presentations, surrenders, notices and demands shall be made or served at the Corporate Trust Office of the Trustee, and the Company hereby appoints the Trustee as Paying Agent for such presentations, surrenders, notices and demands.

(b) The Company may also from time to time designate different or additional offices or agencies where the Securities may be presented or surrendered for any or all such purposes (in or outside of such Place of Payment), and may from time to time rescind such designations; provided, however, that no such designation or rescission shall in any manner relieve the Company of its obligations under the preceding paragraph. The Company will give prompt written notice to the Trustee of any such additional designation or rescission of any change in the location of any such different or additional office or agency. The Company shall enter into an appropriate agency agreement with any Paying Agent not a party to this Indenture. The agreement shall implement the provisions of this Indenture that relate to such agent. The Company shall notify the Trustee of the name and address of each such agent. The Company or any Affiliate thereof may act as Paying Agent.

Section 6.03 To Hold Payment in Trust.

(a) If the Company or an Affiliate thereof shall at any time act as Paying Agent with respect to any series of Securities, on the date on which the principal of and premium, if any, or interest on any of the Securities of that series by their terms or as a result of redemption shall become payable, the Company or such Affiliate will segregate and hold in trust for the benefit of the Holders of such Securities the Trustee a sum sufficient to pay such principal and premium, if any, or interest which shall have so become payable until such sum is paid to such Holders or otherwise disposed of as herein provided, and will notify the Trustee of its action or failure to act in that regard. Upon the Company or such Affiliate becoming subject to liquidation or reorganization under any federal bankruptcy laws with respect to the Company or any Affiliate thereof, if the Company or such Affiliate is then acting as Paying Agent, the Trustee shall replace the Company or such Affiliate as Paying Agent.

(b) If the Company shall appoint, and at the time have, a Paying Agent for the payment of the principal of and premium on any series of Securities, then prior to 11:00 a.m., New York City time, on the date on which the principal of and premium, if any, on the Securities of that series shall become payable as aforesaid, whether by their terms or as a result of the calling thereof for redemption, the Company will deposit with such Paying Agent a sum sufficient to pay such principal and premium, if any, or interest, such sum to be held in trust for the benefit of the Holders of such Securities or the Trustee, and (unless such Paying Agent is the Trustee), the Company or any other obligor of such Securities shall promptly notify the Trustee of its payment or failure to make such payment.

(c) If the Paying Agent shall be other than the Trustee, the Company will cause such Paying Agent to execute and deliver to the Trustee an instrument in which such Paying Agent shall agree with the Trustee, subject to the provisions of this Section 6.03, that such Paying Agent shall:

(i) hold all moneys held by it for the payment of the principal of and premium, if any, or interest on the Securities of that series in trust for the benefit of the Holders of such Securities until such sums shall be paid to such Holders or otherwise disposed of as may be required by the Trustee;

(ii) give to the Trustee notice of any Default by the Company or any other obligor upon the Securities of that series of which such payment of the principal of and premium, if any, or interest on the Securities of that series; and

(iii) at any time during the continuance of any such Default, upon the written request of the Trustee, pay to the Trustee all sums held in trust by such Paying Agent.

(d) Anything in this Section 6.03 to the contrary notwithstanding, the Company may at any time, for the purpose of obtaining the satisfaction or discharge of this Indenture or for any other reason, pay or cause to be paid to the Trustee all sums held in trust by the Company or Paying Agent other than the Trustee as required by this Section 6.03, such sums to be held by the Trustee upon the same trusts as those upon which such sums were held by the Company or such Paying Agent.

(e) Subject to applicable escheatment laws, any money deposited with the Trustee or any Paying Agent, or then held by the Trustee or Paying Agent in trust for the payment of the principal of and premium, if any, or interest on any Security of any series and remaining unclaimed for twelve months after the principal and premium, if any, or interest has become due and payable shall be paid to the Company upon Company Order along with any interest that has accumulated thereon as a result of such money being invested at the direction of the Company, or (if then held by the Company) from such trust, and the Holder of such Security shall thereafter, as an unsecured general creditor, look only to the Company for payment of such amounts without interest thereon, and all liability of the Trustee or such Paying Agent with respect to such trust money, and all liability of the Trustee or such Paying Agent as trustee thereof, shall thereupon cease; provided, however, that the Trustee or such Paying Agent before being repaid such repayment, may at the expense of the Company cause to be published once, in a newspaper published in the English language and having a circulation published on each Business Day and of general circulation in The City of New York, notice that such money remains unclaimed and the amount thereof as specified therein, which shall not be less than 30 days from the date of such publication, any unclaimed balance of such money then held in trust shall be repaid to the Company.

Section 6.04 Merger, Consolidation and Sale of Assets. Except as otherwise provided as contemplated by Section 3.01 with respect to the Company's obligations of Securities:

(a) The Company will not consolidate with any other entity or permit a merger of any other entity into the Company or permit the Company to be merged into any other entity, or sell, convey, transfer or lease all or substantially all its assets to another entity, unless the Company shall be the continuing entity, or the successor, transferee or lessee entity (if other than the Company) shall be organized under the laws of the United States or any State thereof or the District of Columbia and expressly assume, by indenture supplemental hereto delivered by such entity prior to or simultaneously with such consolidation, merger, sale, conveyance, transfer or lease, the due and punctual performance of the principal of and interest and premium, if any, on all the Securities, according to their tenor, and the due and punctual performance of all other obligations to the Holders and the Trustee under this Indenture or under the Securities to be performed or observed by the Company. (ii) immediately after such consolidation, merger, sale, conveyance, transfer or lease the Company or the successor, transferee or lessee entity (if other than the Company) would not be in Default in the performance of any covenant or condition of this Indenture.

(b) Upon any consolidation with or merger into any other entity, or any sale, conveyance or transfer lease of all or substantially all assets of the Company in accordance with this Section 6.04, the successor entity formed by such consolidation or into or with which the Company is merged or to which the Company is sold or to which such conveyance, transfer or lease is made shall succeed to, and be substituted for the Company to exercise every right and power of, the Company under this Indenture with the same effect as if such successor entity had been named in this Indenture herein, and thereafter, except in the case of a lease, the predecessor Company shall be relieved of all obligations and covenants under the Securities, and from time to time such entity may exercise each and every right and power of the Company under this Indenture, whether in its own name, as the Company, or in its own name; and any act or proceeding by any provision of this Indenture required or permitted to be done by the Board of Directors or any officer of the Company may be done with like force and effect by the like board or officer of any entity that shall at the time be the successor entity of the Company hereunder. In the event of any such sale or conveyance, but not any such lease, the Company (or any successor entity which has become such in the manner described in this Section 6.04) shall be discharged from all obligations and covenants under this Indenture with respect to the Securities and may thereupon be dissolved and liquidated.

Section 6.05 Compliance Certificate. Except as otherwise provided as contemplated by Section 3.01 with respect to any series of Securities, the Company shall furnish to the Trustee annually, within 120 days after the end of each fiscal year, a brief certificate from an Officer, principal financial officer, principal executive officer or principal accounting officer of the Company, as to his or her knowledge of the Company's compliance with all conditions and covenants under this Indenture and, in the event of any Default, describing each such Default of which the Company may have knowledge and what action the Company is taking or proposing to take with respect thereto. Such certificates need not be filed with the Trustee. Section 16.01 of this Indenture.

Section 6.06 Conditional Waiver by Holders of Securities. Anything in this Indenture to the contrary notwithstanding, the Company shall not omit in any particular instance to comply with a covenant or condition set forth herein with respect to any series of Securities if the Company has obtained and filed with the Trustee, prior to the time of such failure or omission, evidence (as provided in Article VIII) of the consent of a majority in aggregate principal amount of the Securities of such series at the time Outstanding (except as to a covenant or condition of Section 14.02 cannot be modified or amended without the consent of the Holder of each Outstanding Security of such series affected (such consent of the Holder of each Outstanding Security of such series affected shall be required), either waiving such compliance in such event, generally waiving compliance with such covenant or condition, but no such waiver shall extend to or affect such covenant or condition to the extent so expressly waived, or impair any right consequent thereon and, until such waiver shall have become effective, the obligations of the Company and the duties of the Trustee in respect of any such covenant or condition shall remain in full force and effect.

Section 6.07 Statement by Officers as to Default. The Company shall deliver to the Trustee as soon as possible and in any event not later than 10 business days after the Company becomes aware of the occurrence of any Event of Default or an event which, with the giving of notice or the lapse of time, would constitute an Event of Default, an Officer's Certificate setting forth the details of such Event of Default or Default and the action the Company proposes to take with respect thereto.

ARTICLE VII

REMEDIES OF TRUSTEE AND SECURITYHOLDERS

Section 7.01 Events of Default. Except where otherwise indicated by the context or where the term is otherwise defined for a specific purpose, the term "Event of Default" as used in this Indenture with respect to Securities of any series shall mean any of the following described events, whether or not either inapplicable to a particular series or it is specifically deleted or modified in the manner contemplated in Section 1.02:

- (a) the failure of the Company to pay any installment of interest on any Security of such series when and as the same shall become payable, which failure shall have continued unremedied for a period of 30 days;
- (b) the failure of the Company to pay the principal of (and premium, if any, on) any Security of such series, when and as the same shall become payable, whether at Maturity as therein expressed, by call for redemption (otherwise than pursuant to a sinking fund), upon the occurrence of an Event of Default under this Indenture or otherwise;
- (c) the failure of the Company to pay a sinking fund installment, if any, when and as the same shall become payable on any Security of such series, which failure shall have continued unremedied for a period of 30 days;

(d) the failure of the Company, subject to the provisions of Section 6.06, to perform any covenants or satisfy any conditions of this Indenture (or the terms of the Securities of such series or a supplemental indenture establishing such series) (other than a covenant which has been expressly included in this Indenture solely for the benefit of a series of Securities other than that series and other than a condition a default in the performance of which is elsewhere in this Section 7.01 specifically addressed), which failure shall not have been remedied without provision deemed to be adequate for the remedying thereof having been made, for a period of 90 days after written notice shall have been given to the Company by the Trustee or shall have been given to the Company and the Trustee by Holders of 25% or more in aggregate principal amount of the Securities of such series then Outstanding, specifying such failure, requiring the Company to remedy the same and stating that such notice is a “Notice of Default” hereunder;

(e) the entry by a court having jurisdiction in the premises of a decree or order for relief in respect of the Company in a case under the federal bankruptcy laws, as now or hereafter constituted, or any other applicable federal or state bankruptcy, insolvency or reorganization law now or hereafter in effect, or appointing a receiver, liquidator, assignee, custodian, trustee or sequestrator (or similar official) of the Company or of substantially all the property of the Company or ordering the winding-up or liquidation of its affairs and such decree or order shall remain in effect for a period of 90 consecutive days;

(f) the commencement by the Company of a voluntary case under the federal bankruptcy laws, as now or hereafter constituted, or any other applicable federal or state bankruptcy, insolvency or other similar law now or hereafter in effect, or the consent by the Company to the appointment of or taking possession by a receiver, liquidator, assignee, trustee, custodian or sequestrator (or similar official) of the Company or of substantially all the property of the Company or making by it of an assignment for the benefit of creditors or the admission by it in writing of its inability to pay its debts generally as they become due or the taking of corporate action by the Company in furtherance of any action; or

(g) the occurrence of any other Event of Default with respect to Securities of such series as provided in Section 6.06, provided, however, that no event described in clause (d) or (other than with respect to a payment default) (g) above shall constitute an Event of Default hereunder until the Trustee or the Holders of 25% or more in aggregate principal amount of the Securities of such series then Outstanding shall have given notice to the Company (and the Trustee in case of notice by the Holders) of the Default, specifying the Default, requiring the Company to remedy the same and stating that such notice is a “Notice of Default” hereunder.

Notwithstanding the foregoing provisions of this Section 7.01, if the principal or any premium or interest on any Security is payable in a currency other than the Currency of the United States and such Currency is not available to the Company for making payment thereof due to exchange controls or other circumstances beyond the control of the Company, the Company will be entitled to satisfy its obligations on such Security by payment in the Currency of the United States of the principal or premium or interest on such Security in U.S. dollars.

making such payment in the Currency of the United States in an amount equal to the Currency of the United States equivalent of the such other Currency, as determined by the Company's agent in accordance with Section 3.11(c) hereof by reference to the noon buy of New York for cable transfers for such Currency ("Exchange Rate"), as such Exchange Rate is reported or otherwise made available by the Federal Reserve Bank of New York on the date of such payment, or, if such rate is not then available, on the basis of the most recently available rate. Notwithstanding the foregoing provisions of this Section 7.01, any payment made under such circumstances in the Currency of the United States. If the required payment is in a Currency other than the Currency of the United States will not constitute an Event of Default under this Article.

Section 7.02 Acceleration; Rescission and Annulment.

(a) Except as otherwise provided as contemplated by Section 3.01 with respect to any series of Securities, if any one or more of the above-described Events of Default (other than an Event of Default specified in Section 7.01(e) or 7.01(f)) shall happen with respect to Securities of such series then Outstanding, then, and in each and every such case, during the continuance of any such Event of Default, the Trustee or any Holder or more in principal amount of the Securities of such series then Outstanding may declare the principal (or, if the Securities of that series are Original Issue Discount Securities, such portion of the principal amount as may be specified in the terms of that series) of and all accrued and unpaid interest on all the Securities of such series then Outstanding to be due and payable immediately by a notice in writing to the Company (and to the Trustee, if any) by Holders), and upon any such acceleration such principal amount (or specified amount) and accrued and unpaid interest thereon shall be immediately due and payable. If an Event of Default specified in Section 7.01(e) or 7.01(f) occurs and is continuing, then in every such case, the principal amount (or, if the Securities of that series are Original Issue Discount Securities, such portion of the principal amount as may be specified in the terms of that series) of and accrued and unpaid interest on all of the Securities of that series then Outstanding shall automatically become due and payable immediately upon acceleration or any other action on the part of the Trustee or any Holder, become due and payable immediately. Upon payment of such principal and interest, the Securities of such series shall be deemed to have been paid in full.

Currency in which such Securities are denominated (subject to the last paragraph of Section 7.01 and except as otherwise provided in Section 3.01), all obligations of the Company in respect of the payment of principal of and interest on the Securities of such series shall be deemed to have been paid in full.

(b) The provisions of Section 7.02(a), however, are subject to the condition that, at any time after the principal and accrued interest on all the Securities of such series, to which any one or more of the above-described Events of Default is applicable, shall have become due and payable, to be or shall have automatically become due and payable, and before a judgment or decree for payment of the money due has been entered by a court of competent jurisdiction, the Trustee as hereinafter provided in this Article, Holders of a majority in principal amount of the Securities of that Series then Outstanding may, by written notice to the Company and the Trustee, may rescind and annul such acceleration if:

(i) the Company has paid or deposited with the Trustee or Paying Agent a sum in the Currency in which such Securities are denominated (subject to the last paragraph of Section 7.01 and except as otherwise provided pursuant to Section 3.01) sufficient to pay

(A) all amounts owing the Trustee and any predecessor trustee hereunder under Section 11.01(a) (principal of such Securities) and that all sums payable under this clause (A) shall be paid in U.S. Dollars;

(B) all accrued and unpaid interest, if any, upon all the Securities of such series with interest thereon; and interest thereon shall be legally enforceable, on any overdue installment of interest at the rate borne by or prescribed in such Securities; and

(C) the principal of and accrued and unpaid premium, if any, on any Securities of such series that have become due otherwise than by such acceleration with interest thereon to the extent that interest thereon shall be legally enforceable in such Securities; and installment of interest at the rate borne by or prescribed in such Securities; and

(ii) every other Default and Event of Default with respect to Securities of that series, other than the non-payment of interest on Securities of that series which have become due solely by such acceleration, have been cured or waived as provided in Section 7.03.

(c) No such rescission shall affect any subsequent default or impair any right consequent thereon.

(d) For all purposes under this Indenture, if a portion of the principal of any Original Issue Discount Securities shall have become due and declared due and payable pursuant to the provisions hereof, then, from and after such acceleration, unless such acceleration has been annulled, the principal amount of such Original Issue Discount Securities shall be deemed, for all purposes hereunder, to be such portion thereof as shall be due and payable as a result of such acceleration, and payment of such portion of the principal thereof as shall be due as a result of such acceleration, together with interest, if any, thereon and all other amounts owing thereunder, shall constitute payment in full of such Original Issue Discount Securities.

Section 7.03 Other Remedies. If the Company shall fail for a period of 30 days to pay any installment of interest on the Securities, or shall fail to pay any principal of and premium, if any, on any of the Securities of such series when and as the same shall become due, whether at Maturity, or by call for redemption (other than pursuant to the sinking fund), by acceleration as authorized by this Indenture, or shall fail for a period of 30 days to make any required sinking fund payment as to a series of Securities, then, upon demand of the Trustee, the Company will pay to the Paying Agent for the benefit of the Holders of Securities of such series then Outstanding the whole amount which then

due and payable on all the Securities of such series for principal, premium, if any, and accrued and unpaid interest, with interest (so far as may be legally enforceable) on the overdue principal and on the overdue premium, if any, and accrued and unpaid interest at the rate borne by such Securities, and all amounts owing the Trustee and any predecessor trustee hereunder under Section 11.01(a).

In case the Company shall fail forthwith to pay such amounts upon such demand, the Trustee, in its own name and as trustee of an express trust, shall be entitled and empowered to institute any action or proceeding at law or in equity for the collection of the sums so due and to prosecute any such action or proceeding to judgment or final decree, and may enforce any such judgment or final decree against the Company or any other obligor upon the Securities of such series, and collect the moneys adjudged or decreed to be payable out of the property of the Company or other obligor upon the Securities of such series, wherever situated, in the manner provided by law. Every recovery of judgment in any such action or other proceeding, subject to the payment to the Trustee of all amounts owing the Trustee and any predecessor trustee hereunder under Section 11.01(a), shall be for the ratable benefit of the Holders of such series of Securities which shall be the subject of such action or proceeding. Any action or proceeding upon or under any of the Securities or this Indenture may be enforced by the Trustee without the possession of any of the Securities or the production of any thereof at any trial or any proceeding relative thereto.

Section 7.04 Trustee as Attorney-in-Fact. The Trustee is hereby appointed, and each and every Holder of the Securities, by receiving and holding the same, shall be conclusively deemed to have appointed the Trustee, the true and lawful attorney-in-fact of such Holder, with authority to execute (whether or not the Company shall be in Default in respect of the payment of the principal of, premium, if any, or interest on, any of the Securities) in its own name and as trustee of an express trust or otherwise as it shall deem advisable, in any receivership, insolvency, liquidation, reorganization or other judicial proceeding relative to the Company or any other obligor upon the Securities or to their respective creditors, any and all claims, proofs of claim, proofs of debt, petitions, consents, other papers and documents and amendments of any thereof, and to do or advisable in order to have the claims of the Trustee and any predecessor trustee hereunder and of the Holders of the Securities allowed in any such proceeding and to collect and receive any moneys or other property payable or deliverable on any such claim, and to execute and deliver any other papers and documents and to do and perform any and all other acts and things, as it may deem necessary or advisable in order to carry out such proceeding any of the claims of the Trustee and any predecessor trustee hereunder and of any of such Holders in respect of any of the Securities and any receiver, assignee, trustee, custodian or debtor in any such proceeding is hereby authorized, and each and every taker of the Securities, by receiving and holding the same, shall be conclusively deemed to have authorized any such receiver, assignee, trustee, custodian or debtor to make any such payment or delivery only to or on the order of the Trustee, and to pay to the Trustee any amount due it and any predecessor trustee hereunder under Section 11.01(a); provided, however, that nothing herein contained shall be deemed to authorize or empower the Trustee to accept or adopt, on behalf of any Holder of Securities, any plan of reorganization or readjustment affecting the Securities or the rights of the Holders thereof, or to authorize or empower the Trustee to vote in respect of the claim of any Holder of any Securities in any such proceeding.

Section 7.05 Priorities. Any moneys or properties collected by the Trustee with respect to a series of Securities under this Article shall be applied in the order following, at the date or dates fixed by the Trustee for the distribution of such moneys or properties and, in the event of the distribution of such moneys or properties on account of the Securities of any series, upon presentation of the Securities of such series thereon the payment, if only partially paid, and upon surrender thereof, if fully paid:

First: To the payment of all amounts due to the Trustee and any predecessor trustee hereunder under Section 14.02.

Second: Subject to Article XV (to the extent applicable to any series of Securities then outstanding), to the payment of the principal and unpaid for principal of and any premium and interest on the Outstanding Securities of such series in respect of which or in respect of which such money has been collected, ratably, without preference or priority of any kind, according to the amounts due and payable on the Outstanding Securities for principal and any premium and interest, respectively.

Any surplus then remaining shall be paid to the Company or as directed by a court of competent jurisdiction.

Section 7.06 Control by Securityholders; Waiver of Past Defaults. The Holders of a majority in principal amount of the Securities then Outstanding may direct the time, method and place of conducting any proceeding for any remedy available to the Trustee in respect of the Securities of such series, exercising any trust or power hereby conferred upon the Trustee with respect to the Securities of such series, provided, however, that the provisions of Sections 11.01 and 11.02, the Trustee shall have the right to decline to follow any such direction if the Trustee being a prudent person determines that the action so directed may not lawfully be taken or would be unduly prejudicial to Holders not joining in such direction involve the Trustee in personal liability. Prior to any acceleration of the Maturity of the Securities of any series, the Holders of a majority in principal amount of such series of Securities at the time Outstanding may on behalf of the Holders of all of the Securities of such series waive any Default or Event of Default hereunder and its consequences except a Default in the payment of interest or any premium on or the Securities of such series and except as to a covenant or condition which under Section 14.02 cannot be modified or amended without the consent of the Holder of each Outstanding Security of such series affected, in which case the consent of the Holder of each Outstanding Security of such series shall be required for such waiver. Upon any such waiver the Company, the Trustee and the Holders of the Securities of such series shall resume their former positions and rights hereunder, respectively; but no such waiver shall extend to any subsequent or other Default or Event of Default or impair any right consequent thereon. Whenever any Default or Event of Default hereunder shall have been waived as permitted by this Section, said Default or Event of Default shall for all purposes of the Securities of such series and this Indenture be deemed to have been cured and the Indenture shall continue.

continuing.

Section 7.07 Limitation on Suits. No Holder of any Security of any series shall have any right to institute any action, suit or proceeding in equity for the execution of any trust hereunder or for the appointment of a receiver or for any other remedy hereunder, in each case, in connection with an Event of Default with respect to such series of Securities, unless such Holder previously shall have given to the Trustee written notice of the Events of Default herein specified with respect to such series of Securities, and unless also the Holders of 25% or more in principal amount of the Securities of such series then Outstanding shall have requested the Trustee in writing to take action in respect of the matter complained of; and also there shall have been offered to the Trustee security and indemnity reasonably satisfactory to it against the costs, loss, expenses, damages and interest incurred therein or thereby, and the Trustee, for 60 days after receipt of such notification, request and offer of indemnity, shall have notified the Holder to institute any such action, suit or proceeding; and such notification, request and offer of indemnity are hereby declared in every case to be conditions precedent to any such action, suit or proceeding by any Holder of any Security of such series; it being understood and intended that more of the Holders of Securities of such series shall have any right in any manner whatsoever by his, her, its or their action to enforce the rights hereunder, except in the manner herein provided, and that every action, suit or proceeding at law or in equity shall be instituted, had and prosecuted in the manner herein provided and for the equal benefit of all Holders of the Outstanding Securities of such series; provided, however, that no Indenture or in the Securities of such series shall affect or impair the obligation of the Company, which is absolute and unconditional for the payment of principal of, premium, if any, and interest on the Securities of such series to the respective Holders of such Securities at the respective times and places stated in the Securities stated, or affect or impair the right, which is also absolute and unconditional, of such Holders to institute suit to enforce the payment of the Securities.

Section 7.08 Undertaking for Costs. All parties to this Indenture and each Holder of any Security, by such Holder's acceptance of the terms of this Indenture, shall be deemed to have agreed that any court may in its discretion require, in any action, suit or proceeding for the enforcement of any right or remedy under this Indenture, or in any action, suit or proceeding against the Trustee for any action taken or omitted by it as Trustee, the filing by a party of such action, suit or proceeding of an undertaking to pay the costs of such action, suit or proceeding, and that such court may in its discretion award such reasonable costs, including reasonable attorneys' fees and expenses, against any party litigant in such action, suit or proceeding, having regard to the merits and good faith of the claims or defenses made by such party litigant; provided, however, that the provisions of this Section 7.08 shall not apply to any action, suit or proceeding instituted by the Trustee, to any action, suit or proceeding instituted by any one or more Holders of Securities of such series the aggregate more than 10% in principal amount of the Securities of any series Outstanding, or to any action, suit or proceeding instituted by any one or more Holders of Securities of any series for the enforcement of the payment of the principal of or premium, if any, or the interest on, any such Securities of such series, on or after the respective due dates expressed in such Securities.

Section 7.09 Remedies Cumulative. No remedy herein conferred upon or reserved to the Trustee or to the Holders of Securities shall be intended to be exclusive of any other remedy or remedies, and each and every remedy shall be cumulative and shall be in addition to any other remedy given hereunder or now or hereafter existing at law or in equity or by statute. No delay or omission of the Trustee or of any Holder of Securities of any series to exercise any right or power accruing upon any Default or Event of Default shall impair any such right or power or shall constitute a waiver of any such Default or Event of Default or an acquiescence therein; and every power and remedy given by this Article VII to the Trustee or to the Holders of Securities shall be cumulative and shall be in addition to any other remedy given hereunder or now or hereafter existing at law or in equity or by statute.

the Holders of Securities of any series, respectively, may be exercised from time to time and as often as may be deemed expedient by the Holders of Securities of such series, as the case may be. In case the Trustee or any Holder of Securities of any series shall have parted with any right under this Indenture and the proceedings for the enforcement thereof shall have been discontinued or abandoned because of any other reason or shall have been adjudicated adversely to the Trustee or to such Holder of Securities, then and in every such case the Trustee and the Holders of the Securities of such series shall severally and respectively be restored to their former positions and rights and thereafter all rights, remedies and powers of the Trustee and the Holders of the Securities of such series shall continue as though no such action had been taken, except as to any matters so waived or adjudicated.

ARTICLE VIII

CONCERNING THE SECURITYHOLDERS

Section 8.01 Evidence of Action of Securityholders. Whenever in this Indenture it is provided that the Holders of a specified majority in aggregate principal amount of the Securities or of any series of Securities may take any action (including the making of a request, the giving of any notice, consent or waiver or the taking of any other action), the fact that at the time of taking any such action such specified percentage or majority have joined therein may be evidenced by (a) any instrument or any number of instruments executed by Securityholders in person, by an agent or by a proxy appointed in writing, including through an electronic system for transactions operated by the Depositary for such series or otherwise (such action becoming effective, except as herein otherwise expressly provided), or (b) any instruments or evidence of electronic consents are delivered to the Trustee and, where it is hereby expressly required, to the Company, or (c) the record of the Holders of Securities voting in favor thereof at any meeting of Securityholders duly called and held in accordance with Article IX, or (c) by a combination of such instrument or instruments and any such record of such a meeting of Securityholders.

Section 8.02 Proof of Execution or Holding of Securities. Proof of the execution of any instrument by a Securityholder or his, her or its agent, proxy and proof of the holding by any Person of any of the Securities shall be sufficient if made in the following manner:

(a) The fact and date of the execution by any Person of any such instrument may be proved (i) by the certificate of any notary public or other officer in any jurisdiction who, by the laws thereof, has power to take acknowledgments or proof of deeds to be recorded with the Public Records of such jurisdiction, that the Person who signed such instrument did acknowledge before such notary public or other officer the execution thereof, or (ii) by the testimony of two witnesses of such execution sworn to before any such notary or other officer. Where such execution is by a Person acting in other than his or her individual capacity, such certificate or affidavit shall also constitute sufficient proof of his or her authority.

(b) The ownership of Securities of any series shall be proved by the Register of such Securities or by a certificate of the Company of such series.

(c) The record of any Holders' meeting shall be proved in the manner provided in Section 9.06.

(d) The Trustee may require such additional proof of any matter referred to in this Section 8.02 as it shall deem appropriate so long as the request is a reasonable one.

(e) If the Company shall solicit from the Holders of Securities of any series any action, the Company may, at its option, fix a record date for the determination of Holders of Securities entitled to take such action, but the Company shall have no obligation to fix a record date. If such a record date is fixed, such action may be sought or given before or after such record date, but only the Holders of Securities of record at the close of business on such record date shall be deemed to be Holders of Securities for the purpose of determining whether Holders of the requisite proportion of Outstanding Securities of such series have authorized or agreed or consented to such action, and for that purpose the Outstanding Securities of such series shall be computed as of such record date.

Section 8.03 Persons Deemed Owners.

(a) The Company, the Trustee or any of their agents shall treat the Person in whose name any Security is registered as the owner of such Security for the purpose of receiving payment of principal of and premium, if any, and (subject to Section 3.08) interest, if any, on, such Security, and for all other purposes whatsoever, whether or not such Security be overdue, and neither the Company, the Trustee nor any of their agents shall be bound by notice to the contrary. All payments made to any Holder, or upon his, her or its order, shall be valid, and, to the extent of the sum so paid, shall be effectual to satisfy and discharge the liability for moneys payable upon such Security.

(b) None of the Company, the Trustee, or any of their agents will have any responsibility or liability for any aspect of the maintenance of the records or for payments made on account of beneficial ownership interests in a Global Security or for maintaining, supervising or reviewing accounts or to such beneficial ownership interests.

Section 8.04 Effect of Consents. After an amendment, supplement, waiver or other action becomes effective as to any series of Securities, the consent to it by a Holder of such series of Securities is a continuing consent conclusive and binding upon such Holder and every subsequent Holder of the same Securities or portion thereof, and of any Security issued upon the transfer thereof or in exchange therefor or in place thereof, unless the consent is not made on any such Security.

ARTICLE IX
SECURITYHOLDERS' MEETINGS

Section 9.01 Purposes of Meetings. A meeting of Securityholders of any or all series may be called at any time and from time to time for any or all of the purposes set forth in the provisions of this Article IX for any of the following purposes:

(a) to give any notice to the Company or to the Trustee, or to give any directions to the Trustee, or to consent to the waiver or Event of Default hereunder and its consequences, or to take any other action authorized to be taken by Securityholders pursuant to the provisions of Article VIII;

(b) to remove the Trustee and nominate a successor trustee pursuant to the provisions of Article XI;

(c) to consent to the execution of an Indenture or of indentures supplemental hereto pursuant to the provisions of Section 3.01;

(d) to take any other action authorized to be taken by or on behalf of the Holders of any specified aggregate principal amount of Securities of any one or more or all series, as the case may be, under any other provision of this Indenture or under applicable law.

Section 9.02 Call of Meetings by Trustee. The Trustee may at any time call a meeting of all Securityholders of any or all series affected by the action proposed to be taken, to take any action specified in Section 9.01, to be held at such time and at such place as the Trustee shall determine. Notice of every meeting of the Securityholders of a series, setting forth the time and the place of such meeting and in general the business to be transacted at such meeting, shall be mailed at the expense of the Company to Holders of Securities of such series at their last known addresses as they shall appear on the Register of the Company. Such notice shall be mailed not less than 20 nor more than 90 days prior to the date fixed for the meeting.

Section 9.03 Call of Meetings by Company or Securityholders. In case at any time the Company or the Holders of at least 10% of the principal amount of the Securities of any or all series then Outstanding that may be affected by the action proposed to be taken, shall request the Trustee to call a meeting of Securityholders of such series, by written request setting forth in reasonable detail the action proposed to be taken at such meeting, and the Trustee shall not have mailed the notice of such meeting within 20 days after receipt of such request, then the Company or the Securityholders may determine the time and the place for such meeting and may call such meeting to take any action authorized in the Indenture, and mailing notice thereof as provided in Section 9.02.

Section 9.04 Qualifications for Voting. To be entitled to vote at any meeting of Securityholders, a Person shall (a) be a Holder of Securities affected by the action proposed to be taken at the meeting or (b) be a Person appointed by an instrument in writing as proxy for one or more such Securities. The only Persons who shall be entitled to be present or to speak at any meeting of Securityholders shall be the Holders entitled to vote at such meeting and their counsel and any representatives of the Trustee and its counsel and any representatives of the Company and its counsel. Unless otherwise expressly provided pursuant to Section 3.01 with respect to the Securities of any series, any vote, consent or action given or taken by the Holders of any series of Securities at a meeting shall be given or taken, as the case may be, by the Holders of such Securities as a separate class.

Section 9.05 Regulation of Meetings.

(a) Notwithstanding any other provisions of this Indenture, the Trustee may make such reasonable regulations as it may deem fit in regard to any meeting of Securityholders, in regard to proof of the holding of Securities and of the appointment of proxies, and in regard to the duties of inspectors of votes, the submission and examination of proxies, certificates and other evidence of the right to vote, and such other matters concerning the conduct of the meeting as it shall deem fit.

(b) The Trustee shall, by an instrument in writing, appoint a temporary chairman of the meeting, unless the meeting shall be called by the Company or by Securityholders as provided in Section 9.03, in which case the Company or the Securityholders calling the meeting may be, shall in like manner appoint a temporary chair. A permanent chairman and a permanent secretary of the meeting shall be elected at the vote of the meeting.

(c) At any meeting of Securityholders of a series, each Securityholder of such series of such Securityholder's proxy shall vote for each \$1,000 principal amount of Securities of such series Outstanding held or represented by him; provided, however, that no vote shall be counted at any meeting in respect of any Security challenged as not Outstanding and ruled by the chairman of the meeting to be not Outstanding. If the Securities of any series are issuable in minimum denominations of less than \$1,000, then a Holder of such a Security in a principal amount of less than \$1,000 shall be entitled to a fraction of one vote which is equal to the fraction that the principal amount of such Security bears to \$1,000. The chairman of the meeting shall have no right to vote other than by virtue of Securities of such series held by him or her or instrumentally aforesaid duly designating him or her as the Person to vote on behalf of other Securityholders. At any meeting of the Securityholders of a series called pursuant to the provisions of Section 9.02 or 9.03, the presence of Persons holding or representing Securities of such series in the principal amount sufficient to take action as it concerns the Securities of such series upon the business for the transaction of which the meeting called shall be necessary to constitute a quorum, and any such meeting may be adjourned from time to time by a majority of those present, not constituting a quorum, and the meeting may be held as so adjourned without further notice.

Section 9.06 Voting. The vote upon any resolution submitted to any meeting of Securityholders of a series shall be by written ballot. It shall be subscribed the signatures of the Holders of Securities of such series or of their representatives by proxy and the principal amount of Securities of such series held or represented by them. The permanent chairman of the meeting shall appoint two inspectors of votes to count the votes cast at the meeting for or against any resolution and who shall make and file with the secretary of the meeting their verified and true duplicate of all votes cast at the meeting. A record in duplicate of the proceedings of each meeting of Securityholders shall be prepared by the secretary of the meeting and there shall be attached to said record the original reports of the inspectors of votes on any vote by ballot taken thereat. The record shall be signed by one or more Persons having knowledge of the facts setting forth a copy of the notice of the meeting and showing that said notice was properly given as provided in Section 9.02. The record shall show the principal amounts of the Securities voting in favor of or against any resolution. The record shall be signed and verified by the affidavits of the permanent chairman and secretary of the meeting and one of the duplicates shall be delivered to the Trustee and the other to be preserved by the Trustee.

Any record so signed and verified shall be conclusive evidence of the matters therein stated.

Section 9.07 No Delay of Rights by Meeting. Nothing contained in this Article IX shall be deemed or construed to authorize or delay in the exercise of any right or rights conferred upon or reserved to the Trustee or to the Securityholders of such series under any of any call of a meeting of Securityholders of any series or any rights expressly or impliedly conferred hereunder to make such call, of this Indenture or of the Securities of such series.

ARTICLE X
REPORTS BY THE COMPANY AND THE TRUSTEE AND
SECURITYHOLDERS' LISTS

Section 10.01 Reports by Trustee.

(a) So long as any Securities are outstanding, the Trustee shall transmit to Holders such reports concerning the Trustee under this Indenture as may be required pursuant to the Trust Indenture Act at the times and in the manner provided therein. If Section 313(a) of the Trust Indenture Act, the Trustee shall, within 60 days after each anniversary following the date of this Indenture, a brief report which complies with the provisions of such Section 313(a).

(b) The Trustee shall, at the time of the transmission to the Holders of Securities of any report pursuant to the provisions of Section 10.01, file a copy of such report with each stock exchange upon which the Securities are listed, if any, and also with the SEC if the Security listed and registered on a national securities exchange, if any. The Company agrees to notify the Trustee when, as and if the Security is listed on any stock exchange or any delisting thereof.

(c) The Company will reimburse the Trustee for all expenses incurred in the preparation and transmission of any report pursuant to the provisions of this Section 10.01 and of Section 10.02.

Section 10.02 Reports by the Company. The Company shall file with the Trustee and the SEC, and transmit to Holders, such documents and other reports, and such summaries thereof, as may be required pursuant to the Trust Indenture Act at the times and in the manner provided in the Trust Indenture Act; provided that, unless available on EDGAR, any such information, documents or reports required by the SEC pursuant to Section 13 or 15(d) of the Exchange Act shall be filed with the Trustee within 30 days after the same is filed with the SEC. It is understood that the Trustee shall have no responsibility to determine whether such reports are available on EDGAR.

Delivery of such reports, information and documents to the Trustee is for informational purposes only and the Trustee's receipt shall not constitute actual or constructive notice of any information contained therein or determinable from information contained therein. The Company's compliance with any of its covenants hereunder (as to which the Trustee is entitled to rely exclusively on Officer's

Section 10.03 Securityholders' Lists. The Company covenants and agrees that it will furnish or cause to be furnished to

(a) semi-annually, within 15 days after each Record Date, but in any event not less frequently than semi-annually, a list of the names and addresses of the Holders of Securities to which such Record Date applies, as of such Record Date; and

(b) at such other times as the Trustee may request in writing, within 30 days after receipt by the Company of any such request, a list of the names and addresses of the Holders of Securities to which such Record Date applies, in similar form and content as of a date not more than 15 days prior to the time such list is furnished;

provided, however, that so long as the Trustee shall be the Registrar, such lists shall not be required to be furnished to the Trustee.

ARTICLE XI

CONCERNING THE TRUSTEE

Section 11.01 Rights of Trustees; Compensation and Indemnity. The Trustee accepts the trusts created by this Indenture upon the terms and conditions hereof, including the following, to all of which the parties hereto and the Holders from time to time of the Securities shall be bound.

(a) The Trustee shall receive such compensation as the Company and the Trustee shall from time to time agree in writing. The compensation shall not be limited by any limitation on the compensation of a trustee of an express trust. The Company shall reimburse the Trustee promptly upon its request for all reasonable out-of-pocket expenses, disbursements and advances incurred or made by the Trustee (including the reasonable expenses and disbursements for legal fees and counsel), except any such expense, disbursement or advance as may be attributable to its own negligence or willful misconduct as determined by a court of competent jurisdiction.

The Company also agrees to indemnify each of the Trustee and any predecessor Trustee hereunder for, and to hold it harmless from, any loss, cost, liability, damage, claim, or expense incurred without its own negligence or willful misconduct as adjudicated by a court of competent jurisdiction, arising out of or in connection with the acceptance or administration of the trust or trusts hereunder and the performance of its duties (including in any agent capacity in which it acts), as well as the costs and expenses of defending itself against any claim (whether asserted by the Company, the Holders or any other Person) or liability in connection with the exercise or performance of any of its powers or duties, except those attributable to its negligence or willful misconduct. The Trustee shall notify the Company promptly of any claim for which it may be liable. The Company shall defend the claim and the Trustee shall cooperate in the defense. The Trustee may have one separate counsel of its own choice. The Company shall pay the reasonable fees and expenses of such counsel. The Company need not pay for any settlement made without the consent of the Trustee, which consent shall not be unreasonably withheld.

As security for the performance of the obligations of the Company under this Section 11.01(a), the Trustee shall have a lien upon funds held or collected by the Trustee as such, except funds held in trust by the Trustee to pay principal of, premium and interest on. Notwithstanding any provisions of this Indenture to the contrary, the obligations of the Company to compensate and indemnify the Trustee under Section 11.01(a) shall survive the resignation or removal of the Trustee, the termination of this Indenture and any satisfaction and discharge under Article XII. When the Trustee incurs expenses or renders services after an Event of Default specified in clause (e) or (f) of Section 11.01(a), the expenses and compensation for the services are intended to constitute expenses of administration under any applicable federal or state insolvency or similar laws.

(b) The Trustee may execute any of the trusts or powers hereof and perform any duty hereunder either directly or by its agents, attorneys and shall not be responsible for any misconduct or negligence on the part of any agent or attorney appointed with due care.

(c) The Trustee shall not be responsible in any manner whatsoever for the correctness of the recitals herein or in the Securities (except certificates of authentication thereon) contained, all of which are made solely by the Company; and the Trustee shall not be responsible in any manner whatsoever for or with respect to the validity or execution or sufficiency of this Indenture or of the Securities (except certificates of authentication thereon), and the Trustee makes no representation with respect thereto, except that the Trustee represents that it is duly qualified to execute and deliver this Indenture, authenticate the Securities and perform its obligations hereunder and that the statements made by the Company in the Eligibility on Form T-1 supplied to the Company are true and accurate, subject to the qualifications set forth therein. The Trustee shall not be accountable for the use or application by the Company of any Securities, or the proceeds of any Securities, authenticated and delivered hereunder, in conformity with the provisions of this Indenture.

(d) The Trustee may consult with counsel of its selection, and advice of counsel shall be full and complete authorization for the Trustee in respect of any action taken or suffered by the Trustee hereunder in good faith and in accordance with such advice of counsel.

(e) The Trustee may rely upon the certificate of the Secretary or one of the Assistant Secretaries of the Company as to the validity of any Board Resolution or resolution of the stockholders of the Company, and any request, direction, order or demand of the Company may be sufficiently evidenced by, and whenever in the administration of this Indenture the Trustee shall deem it desirable that a matter be established prior to taking, suffering or omitting any action hereunder, the Trustee may rely upon, an Officer's Certificate of the Company (the evidence in respect thereof be herein specifically prescribed).

(f) The Trustee or any agent of the Trustee, in its individual or any other capacity, may become the owner or pledgee of any property subject to Sections 310(b) and 311 of the Trust Indenture Act, may otherwise deal with the Company with the same rights it would have if it were not the Trustee or such agent.

(g) Money held by the Trustee in trust hereunder need not be segregated from other funds except to the extent required shall be under no liability for interest on any money received by it hereunder except as otherwise agreed in writing with the

(h) Any action taken by the Trustee pursuant to any provision hereof at the request or with the consent of any Person w
Holder of any Security shall be conclusive and binding in respect of such Security upon all future Holders thereof or of any Security
may be issued for or in lieu thereof in whole or in part, whether or not such Security shall have noted thereon the fact that such requ
been made or given.

(i) The Trustee may conclusively rely and shall be protected in acting or refraining from acting upon any resolution, ce
instrument, opinion, report, notice, request, consent, order, approval, bond, debenture or other paper or document reasonably believed
and to have been signed or presented by the proper party or parties.

(j) The Trustee shall not be under any obligation to exercise any of the rights or powers vested in it by this Indenture a
or direction of any of the Holders of the Securities, pursuant to any provision of this Indenture, unless such Holders of the Securities
to the Trustee security or indemnity reasonably satisfactory to it against the costs, expenses and liabilities which may be incurred by i

(k) The Trustee shall not be liable for any action taken or omitted by it in good faith and believed by it to be authori
discretion or within the rights or powers conferred upon it by this Indenture.

(l) The Trustee shall not be deemed to have knowledge or notice of any Default or Event of Default unless a Respons
Trustee has actual knowledge thereof or unless the Company or Holders of not less than 25% of the Outstanding Securities notify th

(m) The Trustee shall not be bound to make any investigation into the facts or matters stated in any resolution, certifi
instrument, opinion, report, notice, request, direction, consent, order, bond, debenture, note, other evidence of Indebtedness or other
but the Trustee, may, but shall not be required to, make further inquiry or investigation into such facts or matters as it may

(n) The rights, privileges, protections, immunities and benefits given to the Trustee, including, without limitation,
indemnified, are extended to, and shall be enforceable by, the Trustee in each of its capacities hereunder.

(o) In no event shall the Trustee be responsible or liable for special, indirect, punitive or consequential loss or dama
whatsoever (including, but not limited to, loss of profit) irrespective of whether the Trustee has been advised of the likelihood of su
and regardless of the form of action.

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- (p) The Trustee shall not be required to give any bond or surety in respect of the performance of its powers and duties.
- (q) The Trustee may request that the Company deliver a certificate setting forth the names of individuals and/or titles of such individuals and the actions to be taken by the Trustee at such time to take specified actions pursuant to this Indenture.
- (r) The permissive rights of the Trustee enumerated herein shall not be construed as duties.

Section 11.02 Duties of Trustee.

- (a) If one or more of the Events of Default specified in Section 7.01 with respect to the Securities of any series shall have occurred and during the continuance thereof, the Trustee shall, with respect to such Securities, exercise such of the rights and powers vested in it by the provisions of this Indenture and shall use the same degree of care and skill in their exercise, as a prudent person would exercise or use under the circumstances existing at the time of such person's own affairs.
- (b) None of the provisions of this Indenture shall be construed as relieving the Trustee from liability for its own negligence, or its failure to act, or its own willful misconduct, except that, anything in this Indenture contained to the contrary notwithstanding:
- (i) unless and until an Event of Default specified in Section 7.01 with respect to the Securities of any series shall have occurred and which at the time is continuing,
- (A) the Trustee undertakes to perform such duties and only such duties with respect to the Securities of any series specifically set out in this Indenture, and no implied covenants or obligations shall be read into this Indenture against the Trustee; and its duties and obligations shall be determined solely by the express provisions of this Indenture; and
- (B) the Trustee may conclusively rely, as to the truth of the statements and the correctness of the opinions stated therein, in the absence of bad faith on the part of the Trustee, upon certificates and opinions furnished to it pursuant to the provisions of this Indenture; but in the case of any such certificates or opinions which, by the provisions of this Indenture, are required to be furnished to the Trustee, the Trustee shall be under a duty to examine the same to determine whether or not they comply with the requirements of this Indenture (but need not confirm or investigate the accuracy of mathematical calculations or other facts stated in such certificates, opinions or conclusions stated therein);

(ii) the Trustee shall not be liable to any Holder of Securities or to any other Person for any error of judgment made by any Responsible Officer or Officers of the Trustee, unless it shall be proved that the Trustee was negligent in ascertaining the person

(iii) the Trustee shall not be liable to any Holder of Securities or to any other Person with respect to any action taken by it in good faith, in accordance with the direction of Securityholders given as provided in Section 7.06, relating to the place of conducting any proceeding for any remedy available to it or exercising any trust or power conferred upon it by the Securities

(c) None of the provisions of this Indenture shall require the Trustee to expend or risk its own funds or otherwise to incur any liability in the performance of any of its duties hereunder, or in the exercise of any of its rights or powers, if it shall have reasonable grounds for believing that repayment of such funds or adequate indemnity against such risk or liability is not reasonably assured to the Trustee

(d) Whether or not therein expressly so provided, every provision of this Indenture relating to the conduct or affecting the rights of the Trustee shall be subject to the provisions of this Section 11.02.

Section 11.03 Notice of Defaults. Within 90 days after the occurrence thereof, and if known to the Trustee, the Trustee shall give notice of the Securities of a series notice of each Default or Event of Default with respect to the Securities of such series known to the Trustee. Such notice to Holders at their addresses as the same shall then appear on the Register of the Company, unless such Default shall have been waived before the giving of such notice (the term "Default" being hereby defined to be the events specified in Section 7.01, which are the lapse of time or both would become, Events of Default as defined in said Section). Except in the case of a Default or Event of Default which is principal of, premium, if any, or interest on any of the Securities of such series when and as the same shall become payable, or to make such payment as to Securities of the same series, the Trustee shall be protected in withholding such notice, if and so long as a Responsible Officer of the Trustee in good faith determines that the withholding of such notice is in the interests of the Holders of the Securities of such series.

Section 11.04 Eligibility; Disqualification.

(a) The Trustee shall at all times satisfy the requirements of TIA Section 310(a). The Trustee shall have a combined capital of at least \$50 million as set forth in its most recent published annual report of condition, and shall have a Corporate Trust Office. If at any time the Trustee shall cease to be eligible in accordance with the provisions of this Section 11.04, it shall resign immediately in the manner and with the effect specified in this Article.

(b) The Trustee shall comply with TIA Section 310(b); provided, however, that there shall be excluded from the operation of Section 310(b)(i) any indenture or indentures under which other securities or certificates of interest or participation in other securities are outstanding if the requirements for such exclusion set forth in TIA Section 310(b)(i) are met. If the Trustee has or shall acquire a conflicting interest within the meaning of Section 310(b) of the Trust Indenture Act, the Trustee shall either eliminate such interest or resign, to the extent provided by, and subject to the provisions of, the Trust Indenture Act and this Indenture. If Section 310(b) of the Trust Indenture Act requires at any time after the date of this Indenture to change the circumstances under which a Trustee shall be deemed to have a conflicting interest in Securities of any series or to change any of the definitions in connection therewith, this Section 11.04 shall be automatically amended to reflect such changes.

Section 11.05 Resignation and Notice; Removal. The Trustee, or any successor to it hereafter appointed, may at any time resign from the trusts hereby created with respect to any one or more or all series of Securities by giving to the Company notice in writing. Such resignation shall take effect upon the appointment of a successor Trustee and the acceptance of such appointment by such successor Trustee. Any Trustee may be removed with respect to any series of Securities at any time by the filing with such Trustee and the delivery to the Company of instruments in writing signed by the Holders of a majority in principal amount of the Securities of such series then Outstanding, specifying the reasons therefor and the date when it shall become effective.

If at any time:

(1) the Trustee shall fail to comply with the provisions of TIA Section 310(b) after written request therefor by the Company or the Trustee has been a bona fide Holder of a Security for at least six months (or, if it is a shorter period, the period since the initial issuance of the Securities of such series), or

(2) the Trustee shall cease to be eligible under Section 11.04 and shall fail to resign after written request therefor by the Company or the Trustee, or the Trustee Holder who has been a bona fide Holder of a Security for at least six months (or, if it is a shorter period, the period since the initial issuance of the Securities of such series), or

(3) the Trustee shall become incapable of acting or shall be adjudged a bankrupt or insolvent or a receiver of the Trustee or of its property or affairs or any public officer shall take charge or control of the Trustee or of its property or affairs for the purpose of rehabilitation or liquidation,

then, in any such case, (i) the Company by written notice to the Trustee may remove the Trustee and appoint a successor Trustee with respect to all Securities, or (ii) subject to TIA Section 315(e), any Securityholder who has been a bona fide Holder of a Security for at least six months (or, if it is a shorter period, the period since the initial issuance of the Securities of such series) may, on behalf of himself and all others similarly situated, at the expense of the Company, petition any court of competent jurisdiction for the removal of the Trustee with respect to all Securities and the appointment of a successor Trustee or Trustees.

In addition, the Company may remove the Trustee with respect to Securities of any series without cause if the Company gives such Trustee of such proposed removal at least three months in advance of the proposed effective date of such removal.

Upon its resignation or removal, any Trustee shall be entitled to the payment of reasonable compensation for the services rendered by such Trustee and to the payment of all reasonable expenses incurred hereunder and all moneys then due to it hereunder. The Trustee's indemnification provided in Section 11.01(a) shall survive its resignation or removal.

Section 11.06 Successor Trustee by Appointment.

(a) In case at any time the Trustee shall resign, or shall be removed or if a vacancy exists in the office of the Trustee with respect to Securities of any or all series, the Company shall promptly appoint a successor Trustee. However, if all or substantially all of the Company shall be in the possession of one or more custodians or receivers lawfully appointed, or of trustees in bankruptcy or reorganization proceedings (including a trustee or trustees appointed under the provisions of the federal bankruptcy laws, as now or hereafter consolidated with the federal bankruptcy laws, or of assignees for the benefit of creditors, such receivers, custodians, trustees or assignees, as the case may be, shall promptly appoint a successor Trustee with respect to the Securities of any or all series. Subject to the provisions of Sections 11.04 and 11.05, upon the appointment as aforesaid of a successor Trustee with respect to the Securities of any series, the Trustee with respect to the Securities of such series shall cease to be Trustee hereunder. If such appointment other than by the Holders of Securities of any such series, the Person making such appointment shall forthwith cause notice of such appointment to be mailed to the Holders of Securities of such series at their addresses as the same shall then appear on the Register of the Company. The failure of the Company to mail such notice, or any defect therein, shall not, however, in any way impair or affect the validity of such appointment.

(b) If any Trustee with respect to the Securities of any series shall resign or be removed and a successor Trustee shall not be appointed by the Company or, if any successor Trustee so appointed shall not have accepted its appointment within 30 days after such appointment has been made, the resigning Trustee at the expense of the Company may apply to any court of competent jurisdiction for the appointment of a successor Trustee. If in any other case a successor Trustee shall not be appointed pursuant to the foregoing provisions of this Section 11.06, then, 30 months after such appointment might have been made hereunder, the Holder of any Security of the applicable series or any retiring holder of such Security at the expense of the Company may apply to any court of competent jurisdiction to appoint a successor Trustee. Such court may thereupon appoint a successor Trustee, after such notice, if any, as such court may deem proper and prescribe, appoint a successor Trustee.

(c) Any successor Trustee appointed hereunder with respect to the Securities of one or more series shall execute, acknowledge and deliver to its predecessor Trustee and to the Company, or to the receivers, trustees, assignees or court appointing it, as the case may be, an instrument of appointment hereunder, and thereupon such successor Trustee, without any further act, deed or conveyance, shall become vested with all the authority, rights, powers, trusts, immunities, duties and obligations with respect to such series of such Securities.

predecessor Trustee with like effect as if originally named as Trustee hereunder, and such predecessor Trustee, upon payment of disbursements then unpaid, shall thereupon become obligated to pay over, and such successor Trustee shall be entitled to receive, properties held by such predecessor Trustee as Trustee hereunder with respect to the Securities of such series, subject nevertheless to in Section 11.01(a). Nevertheless, on the written request of the Company or of the successor Trustee or of the Holders of at least 1 amount of the Securities of any such series then Outstanding, such predecessor Trustee, upon payment of its said charges and disbursements, shall execute and deliver an instrument transferring to such successor Trustee upon the trusts herein expressed all the rights, powers and interests of the predecessor Trustee with respect to the Securities of such series and shall assign, transfer and deliver to the successor Trustee all monies and proceeds then held by such predecessor Trustee with respect to the Securities of such series, subject nevertheless to its lien provided for in Section 11.01. At the request of any such successor Trustee or the Company shall make, execute, acknowledge and deliver any and all instruments in writing and effectually vesting in and confirming to such successor Trustee all such authority, rights, powers, trusts, immunities, duties and obligations.

Section 11.07 Successor Trustee by Merger. Any Person into which the Trustee or any successor to it in the trusts created by this Indenture merged or converted, or any Person with which it or any successor to it shall be consolidated, or any Person resulting from any merger, consolidation or other transfer to which the Trustee or any such successor to it shall be a party, or any Person to which the Trustee or any successor to it shall otherwise transfer all or substantially all of the corporate trust business of the Trustee, shall be the successor Trustee under this Indenture upon the execution or filing of any paper or any further act on the part of any of the parties hereto; provided that such Person shall be otherwise qualified to act as Trustee under this Article. In case at the time such successor to the Trustee shall succeed to the trusts created by this Indenture with respect to more series of Securities, any of such Securities shall have been authenticated but not delivered by the Trustee then in office, any such predecessor Trustee may adopt the certificate of authentication of any predecessor Trustee, and deliver such Securities so authenticated; and in case any of the Securities shall not have been authenticated, any successor to the Trustee may authenticate such Securities either in the name of the Trustee hereunder or in the name of the successor Trustee; and in all such cases such certificates shall have the full force which it is anywhere given or in this Indenture provided that the certificate of the Trustee shall have; provided, however, that the right to adopt the certificate of authentication of any predecessor Trustee or authenticate Securities in the name of any predecessor Trustee shall apply only to its successor or successors in office by conversion or consolidation.

Section 11.08 Right to Rely on Officer's Certificate. Whenever in the administration of the provisions of this Indenture the Trustee shall deem it necessary or desirable that a matter be proved or established prior to taking or suffering any action hereunder, such matter (unless otherwise provided with respect thereof be herein specifically prescribed) may, in the absence of negligence or willful misconduct on the part of the Trustee, be conclusively proved and established by an Officer's Certificate with respect thereto delivered to the Trustee, and such Officer's Certificate, in the absence of negligence or willful misconduct on the part of the Trustee, shall be full warrant to the Trustee for any action taken, suffered or suffered under the provisions of this Indenture upon the faith thereof.

Section 11.09 Appointment of Authenticating Agent. The Trustee may appoint an agent (the “Authenticating Agent”) acceptable to authenticate the Securities, and the Trustee shall give written notice of such appointment to all Holders of Securities of the series to which such Authenticating Agent will serve. Unless limited by the terms of such appointment, any such Authenticating Agent may authenticate Securities whenever the Trustee may do so. Each reference in this Indenture to authentication by the Trustee includes authentication by an Authenticating Agent. Securities so authenticated shall be entitled to the benefits of this Indenture and shall be valid and obligatory for the benefit of the Holders of such Securities as if authenticated by the Trustee hereunder.

Each Authenticating Agent shall at all times be a corporation organized and doing business and in good standing under the laws of the United States, any State thereof or the District of Columbia, authorized under such laws to act as Authenticating Agent, having a combined net worth of not less than \$50,000,000 and subject to supervision or examination by Federal or State authority. If such corporation publishes reports at least annually, pursuant to law or to the requirements of said supervising or examining authority, then for the purposes of this Article XI, the capital and surplus of such corporation shall be deemed to be its combined capital and surplus as set forth in its most recent report published. If at any time an Authenticating Agent shall cease to be eligible in accordance with the provisions of this Article XI, it shall immediately in the manner and with the effect specified in this Article XI.

Any corporation into which an Authenticating Agent may be merged or converted or with which it may be consolidated, or any corporation resulting from any merger, conversion or consolidation to which such Authenticating Agent shall be a party, or any corporation succeeding to the corporate agency or corporate trust business of an Authenticating Agent, shall continue to be an Authenticating Agent, provided such corporation shall be otherwise eligible under this Article XI, without the execution or filing of any paper or any further act on the part of the Trustee or the Company or the Authenticating Agent.

An Authenticating Agent may resign at any time by giving written notice thereof to the Trustee and to the Company. The Trustee may terminate the agency of an Authenticating Agent by giving written notice thereof to such Authenticating Agent and to the Company. Upon such a notice of resignation or upon such a termination, or in case at any time such Authenticating Agent shall cease to be eligible in accordance with the provisions of this Section 11.09, the Trustee may appoint a successor Authenticating Agent which shall be acceptable to the Company. Upon written notice of such appointment to all Holders of Securities of the series with respect to which such Authenticating Agent will serve, the Authenticating Agent upon acceptance of its appointment hereunder shall become vested with all the rights, powers and duties of the Authenticating Agent hereunder, with like effect as if originally named as an Authenticating Agent. No successor Authenticating Agent shall be appointed until the provisions of this Section 11.09.

The Company agrees to pay to each Authenticating Agent from time to time reasonable compensation for its services under this Indenture.

Section 11.10 Communications by Securityholders with Other Securityholders. Holders of Securities may communicate with other Holders with respect to their rights under this Indenture or the Securities. The Trustee, the Registrar and anyone else shall have the protection of Section 312(c) of the Trust Indenture Act with respect to such communications.

ARTICLE XII

SATISFACTION AND DISCHARGE; DEFEASANCE

Section 12.01 Applicability of Article. The provisions of this Article shall be applicable to the Securities of all series issued under this Indenture, except as otherwise specified pursuant to Section 3.01.

Section 12.02 Satisfaction and Discharge of Indenture. This Indenture, with respect to the Securities of any series (if all series of such Securities are not to be affected), shall, upon Company Order, cease to be of further effect (except as to any surviving rights of registration and exchange of such Securities herein expressly provided for and the rights of the Holders of the Securities of such series to receive, the principal, premium, if any, and interest on such Securities as and when the same shall become due and payable and except as otherwise provided in paragraph of this Section 12.02), and the Trustee, at the expense of the Company, shall execute proper instruments acknowledging the satisfaction and discharge of this Indenture with respect to the Securities of such series, when,

(a) either:

(i) all Securities of such series theretofore authenticated and delivered (other than (A) Securities that have been stolen and that have been replaced or paid as provided in Section 3.07 and (B) Securities for whose payment money has been deposited in trust or segregated and held in trust by the Company and thereafter repaid to the Company or discharged from such trust in Section 6.03(e)) have been delivered to the Trustee for cancellation; or

(ii) all Securities of such series not theretofore delivered to the Trustee for cancellation,

(A) have become due and payable, or

(B) will become due and payable at their Stated Maturity within one year, or

(C) if redeemable at the option of the Company (including, without limitation, by operation of any sinking fund), are to be called for redemption within one year under arrangements satisfactory to the Trustee for the giving of notice by the Trustee in the name, and at the expense, of the Company,

and the Company, in the case of (A), (B) or (C) above, has irrevocably deposited or caused to be deposited with the Trustee for the purpose an amount in cash in the Currency in which such Securities are payable (subject to Section 12.08) sufficient to discharge the entire indebtedness on such Securities for principal and premium, if any, and interest to the date of such payment of Securities that have become due and payable) or to the Stated Maturity thereof or, in the case of Securities of such series called for redemption as contemplated by (C) above, the applicable Redemption Date, as the case may be, and including sinking fund payments as and when the same shall become due and payable;

(b) the Company has paid or caused to be paid all other sums payable hereunder by the Company with respect to the Securities of such series; and

(c) the Company has delivered to the Trustee an Officer's Certificate and an Opinion of Counsel each stating that all conditions herein provided for relating to the satisfaction and discharge of this Indenture with respect to such series have been complied with.

Notwithstanding the satisfaction and discharge of this Indenture with respect to the Securities of any series, the obligations of the Company under Section 11.01, the provisions of Sections 3.04, 3.05, 3.06, 3.07, 3.10, 6.02 and 6.03 and this Article XII, and, if the Securities of such series are to be redeemed prior to their Stated Maturity (including, without limitation, pursuant to a mandatory sinking fund), the provisions of Section IV hereof, and, if the Securities of such series are convertible into or exchangeable for other securities or property, the rights of the holders of such Securities to convert or exchange, and the obligations of the Company to convert or exchange, such Securities into other securities or property, shall have been deposited with the Trustee pursuant to clause (a) of this Section, the obligations of the Trustee under Section 6.03(e) shall survive such satisfaction and discharge.

Section 12.03 Defeasance and Covenant Defeasance upon Deposit of Moneys or U.S. Government Obligations. At the Company's option, (x) the Company shall be deemed to have been Discharged (as defined below) from its obligations with respect to Securities of any series one day after the applicable conditions set forth below have been satisfied or (y) the Company shall cease to be under any obligation to comply with any term, provision or condition set forth in Section 6.04 and Section 10.02 with respect to Securities of any series (and, if so specified in Section 3.01, any other restrictive covenant added for the benefit of such series pursuant to Section 3.01) ("covenant defeasance") upon the satisfaction of the applicable conditions set forth below:

(a) the Company shall have deposited or caused to be deposited irrevocably with the Trustee as trust funds in trust, specifically designated for, and dedicated solely to, the benefit of the Holders of the Securities of such series (i) money in the Currency in which such Securities are payable in an amount, or (ii) U.S. Government Obligations (as defined below) that, through the payment of interest and principal in accordance with their terms, will provide, not later than one day before the due date of any payment, money in the Currency in which such Securities are payable in an amount, or (iii) a combination of (i) and (ii), sufficient (without consideration of any reinvestment of such principal and interest) to pay the principal and interest on such Securities when due and

discharge each installment of principal (including any mandatory sinking fund payments) of and premium, if any, and interest on, Securities of such series on the dates such installments of interest or principal and premium are due and, if the Securities of such series are not redeemed prior to their Stated Maturity, to pay and discharge the Redemption Price on the Securities called for redemption on the Redemption Date;

(b) no Default with respect to the Securities of such series shall have occurred and be continuing on the date of such Default resulting from the borrowing of funds and the grant of any related liens to be applied to such deposit) and, solely in the case of a Default pursuant to clause (x) of the first paragraph of this Section 12.03, no Default with respect to the Securities of such series under either Section 7.01 shall have occurred at any time during the period ending on and including the 91st day after the date of such Default;

(c) the Company shall have delivered to the Trustee an Opinion of Counsel to the effect that Holders of the Securities shall not recognize income, gain or loss for U.S. federal income tax purposes as a result of the Company's exercise of its option under this Section 12.03, subject to federal income tax on the same amounts and in the same manner and at the same times as would have been the case if such option had been exercised and, in the case of the Securities of such series being Discharged pursuant to clause (x) of the first paragraph of this Section 12.03, the Opinion of Counsel shall be based upon and accompanied by a ruling to that effect received by the Company from or published by the Internal Revenue Service;

(d) if the monies or U.S. Government Obligations or combination thereof, as the case may be, deposited under clause (a) above are sufficient to pay the principal of and premium, if any, and interest on the Securities of such series (including, without limitation, any sinking fund payment) or any portion thereof to be redeemed on a particular Redemption Date (including, without limitation, pursuant to a sinking fund), the Company shall have given to the Trustee irrevocable instructions to redeem such Securities on such date and shall have maintained satisfactory to the Trustee for the giving of notice of such redemption by the Trustee in the name, and at the expense, of the Company;

(e) the Company shall have delivered to the Trustee an Officers Certificate and an Opinion of Counsel, each stating that all the conditions precedent to such action under this Indenture have been complied with.

"Discharged" means, with respect to the Securities of any series, that the Company shall be deemed to have paid and discharged all the indebtedness represented by, and obligations under, the Securities of such series and to have satisfied all the obligations under this Indenture with respect to the Securities of such series (and the Trustee, at the expense of the Company, shall execute proper instruments acknowledging the satisfaction of the obligations following, all of which shall survive such Discharge and remain in full force and effect with respect to the Securities of such series). (A) Holders of Securities of such series to receive, from the trust fund described in clause (a) above, payment of the principal of and premium and interest on such Securities when such payments are due, (B) Sections 3.04, 3.05, 3.06, 3.07, 3.10, 6.02 and 6.03, (C) if the Securities of such series are to be redeemed prior to their Stated Maturity, the

provisions of Article IV hereof, (D) if the Securities of such series are convertible into or exchangeable for other securities or property, (E) the provisions of this Article XII and (F) the rights, powers, trusts, duties and immunities of the Trustee hereunder.

“U.S. Government Obligations” means securities that are (i) direct obligations of the United States for the payment of which credit is pledged or (ii) obligations of a Person controlled or supervised by and acting as an agency or instrumentality of the United States for the payment of which is unconditionally guaranteed as a full faith and credit obligation by the United States, that, in either case under contract, are not callable or redeemable at the option of the issuer thereof, and shall also include a depositary receipt issued by a bank or trust company with respect to any such U.S. Government Obligation or a specific payment of interest on or principal of any such U.S. Government Obligation held by such custodian for the account of the holder of a depositary receipt; provided that (except as required by law) such custodian is not authorized to make any deduction from the amount payable to the holder of such depositary receipt from any amount received by the custodian in respect of such U.S. Government Obligation or the specific payment of interest on or principal of the U.S. Government Obligation evidenced by such depositary receipt.

Section 12.04 Repayment to Company. The Trustee and any Paying Agent shall promptly pay to the Company (or to its designee) upon receipt of a Company Order any moneys or U.S. Government Obligations deposited pursuant to Sections 12.02 and 12.03 with respect to the Securities of such series and held by them that are in excess of the monies and/or U.S. Government Obligations that were required to effect the satisfaction of the sinking fund covenant defeasance or Discharge, as applicable, with respect to the Securities of such series, including any such moneys or obligations deposited with the Trustee under any escrow trust agreement entered into pursuant to Section 12.06. The provisions of Section 6.03(e) shall apply to any such payment by the Trustee or any Paying Agent under this Article.

Section 12.05 Indemnity for U.S. Government Obligations. The Company shall pay and shall indemnify the Trustee against any and all charges or expense charge imposed on or assessed against the deposited U.S. Government Obligations or the principal or interest received on such U.S. Government Obligations.

Section 12.06 Deposits to Be Held in Escrow. Any deposits with the Trustee referred to in Section 12.03 above shall be irrevocably held by the Trustee to the extent provided in Sections 12.04 and 6.03(e)) and shall be made under the terms of an escrow trust agreement. If any Outstanding Securities of such series are to be redeemed prior to their Stated Maturity, whether pursuant to any optional redemption provisions or in accordance with any optional sinking fund requirement, the applicable escrow trust agreement shall provide therefor and the Company shall make such payments as shall be satisfactory to the Trustee for the giving of notice of redemption by the Trustee in the name, and at the expense, of the Company.

Section 12.07 Application of Trust Money.

(a) Neither the Trustee nor any other Paying Agent shall be required to pay interest on any moneys deposited pursuant to this Indenture, except such as it shall agree with the Company in writing to pay thereon.

(b) Subject to Section 6.03(e), any monies and U.S. Government Obligations which at any time shall be deposited by the Company on its behalf with the Trustee or any other Paying Agent for the purpose of paying the principal of, premium, if any, and interest on any Securities shall be and are hereby assigned, transferred and set over to the Trustee or such other Paying Agent in trust for the respective Holders of such Securities for the purpose for which such moneys shall have been deposited, and such funds shall be applied by the Trustee or Paying Agent in accordance with the provisions of such Securities and this Indenture to the payment of all sums due and to become due on such Securities in respect of principal, premium, if any, and interest; but such moneys need not be segregated from other funds except to the extent required by law. Anything to the contrary notwithstanding, neither the Company nor any of its Subsidiaries nor any of their respective Affiliates may act as Paying Agent for Securities in respect of which money or U.S. Government Obligations have been deposited pursuant to this Article XIII.

Section 12.08 Deposits of Non-U.S. Currencies. Notwithstanding the foregoing provisions of this Article, if the Securities are payable in a Currency other than U.S. Dollars, the Currency or the nature of the government obligations to be deposited with the Trustee or Paying Agent under the foregoing provisions of this Article shall be as set forth in a Board Resolution, a Company Order or in one or more supplemental indentures.

ARTICLE XIII

IMMUNITY OF CERTAIN PERSONS

Section 13.01 No Personal Liability. No recourse shall be had for the payment of the principal of, or the premium, if any, on any Security or for any claim based thereon or otherwise in respect thereof or of the Indebtedness represented thereby, or upon any obligation created by the agreement of this Indenture, against any incorporator, stockholder, officer or director, as such, past, present or future, of the Company or any successor corporation, either directly or through the Company or any successor corporation, whether by virtue of any constitutional provision or rule of law, or by the enforcement of any assessment or penalty or otherwise; it being expressly agreed and understood that this Indenture and the Securities are solely corporate obligations, and that no personal liability whatsoever shall attach to, or be incurred by, any incorporator, officer or director, as such, past, present or future, of the Company or of any successor corporation, either directly or through the Company or any successor corporation, because of the incurring of the Indebtedness hereby authorized or under or by reason of any of the obligations, promises or agreements contained in this Indenture or in any of the Securities, or to be implied herefrom or therefrom, and that all liability shall be the character against every such incorporator, stockholder, officer and director is, by the acceptance of the Securities and as a condition of the issue of the Securities and in consideration for, the execution of this Indenture and the issue of the Securities expressly waived and released.

ARTICLE XIV

SUPPLEMENTAL INDENTURES

Section 14.01 Without Consent of Securityholders. Except as otherwise provided as contemplated by Section 3.01 with respect to Securities, the Company and the Trustee, at any time and from time to time, may enter into one or more indentures supplemental to the Indenture, in whole or in part, satisfactory to the Trustee, for any one or more of or all the following purposes:

(a) to add to the covenants and agreements of the Company, to be observed thereafter and during the period, if any, in which the Indenture or indentures expressed, and to add Events of Default, in each case for the protection or benefit of the Holders of all or any series of Securities (and if such covenants, agreements and Events of Default are to be for the benefit of fewer than all series of Securities, the covenants, agreements and Events of Default are expressly being included for the benefit of such series as shall be identified therein), and to confer any right or power herein conferred upon the Company;

(b) to delete or modify any Events of Default with respect to any series of the Securities, the form and terms of which are established pursuant to such supplemental indenture as permitted in Section 3.01 (and, if any such Event of Default is applicable to more than one series of the Securities, specifying the series to which such Event of Default is applicable), and to specify the rights and remedies of the Holders of such Securities in connection therewith;

(c) to add to or change any of the provisions of this Indenture to provide, change or eliminate any restrictions on the payment of principal of or premium, if any, on Securities; provided that any such action shall not adversely affect the interests of the Holders of Securities in any material respect;

(d) to change or eliminate any of the provisions of this Indenture; provided that any such change or elimination shall be made only when there is no Outstanding Security of any series created prior to the execution of such supplemental indenture that is entitled to the benefit of such provision and as to which such supplemental indenture would apply;

(e) to evidence the succession of another entity to the Company, or successive successions, and the assumption by such entity of the covenants and obligations of the Company contained in the Securities of one or more series and in this Indenture or any supplemental indenture;

(f) to evidence and provide for the acceptance of appointment hereunder by a successor Trustee with respect to one or more series of Securities and to add to or change any of the provisions of this Indenture as shall be necessary for or facilitate the administration of the Indenture by more than one Trustee, pursuant to the requirements of Section 11.06(c);

(g) to secure any series of Securities;

(h) to evidence any changes to this Indenture pursuant to Sections 11.05, 11.06 or 11.07 hereof as permitted by the

(i) to cure any ambiguity or inconsistency or to correct or supplement any provision contained herein or in any indenture hereto which may be defective or inconsistent with any other provision contained herein or in any supplemental indenture or to correct hereof, as amended and supplemented, that are applicable to the Securities of any series to the description of the terms of such Securities in any memorandum, prospectus supplement or other offering document applicable to such Securities at the time of initial sale to

(j) to add to or change or eliminate any provision of this Indenture as shall be necessary or desirable in accordance with the Trust Indenture Act;

(k) to add guarantors or co-obligors with respect to any series of Securities or to release guarantors from their guaranties in accordance with the terms of the applicable series of Securities;

(l) to make any change in any series of Securities that does not adversely affect in any material respect the rights of the holders of such Securities;

(m) to provide for uncertificated securities in addition to certificated securities;

(n) to supplement any of the provisions of this Indenture to such extent as shall be necessary to permit or facilitate the discharge of any series of Securities; provided that any such action shall not adversely affect the interests of the Holders of Securities of any other series of Securities in any material respect;

(o) to prohibit the authentication and delivery of additional series of Securities; or

(p) to establish the form and terms of Securities of any series as permitted in Section 3.01, or to authorize the issuance of Securities of a series previously authorized or to add to the conditions, limitations or restrictions on the authorized amount, terms or conditions of authentication or delivery of the Securities of any series, as herein set forth, or other conditions, limitations or restrictions thereafter.

Subject to the provisions of Section 14.03, the Trustee is authorized to join with the Company in the execution of any such supplemental indenture, to make the further agreements and stipulations which may be therein contained and to accept the conveyance, transfer, assignment or pledge of any property or assets thereunder.

Any supplemental indenture authorized by the provisions of this Section 14.01 may be executed by the Company and the Trustee with the consent of the Holders of any of the Securities at the time Outstanding.

Section 14.02 With Consent of Securityholders; Limitations.

(i) extend the Stated Maturity of the principal of, or any installment of interest on, any Security, or reduce the principal of, or any installment of interest on, any Security, or reduce the interest on, any Security, or reduce the premium payable on, any Security, or extend the Stated Maturity of, or change the place of payment of, any Security, or change the Currency in which the principal of and premium, if any, or interest on such Security is denominated or payable, or reduce the principal of an Original Issue Discount Security that would be due and payable upon acceleration of the Maturity thereof pursuant to Section 3.01, or change the ranking of any Security or, in the case of any subordinated Security, the definition of Senior Indebtedness applicable to such Security, or impair, or interfere with, or restrict, or limit, or prevent, or delay, or suspend, or terminate, or otherwise affect, or interfere with, or restrict, or limit, or prevent, or delay, or suspend, or terminate, or otherwise affect, the right to institute suit for the enforcement of any payment on or after the Stated Maturity thereof (or, in the case of redemption of any Security, the Redemption Date), or materially adversely affect the economic terms of any right to convert or exchange any Security as may be provided in the applicable indenture, or

(iii) modify any of the provisions of this Section, Section 7.06 or Section 6.06, except to increase any such percentage; provided, however, that this clause shall not be deemed to require the consent of any Holder with respect to any modification of the references to “the Trustee” and concomitant changes in this Section and Section 6.06, or the deletion of this proviso, in accordance with the requirements of Sections 11.06 and 14.01(f); or

(b) A supplemental indenture that changes or eliminates any provision of this Indenture which has expressly been included for the benefit of one or more particular series of Securities or which modifies the rights of the Holders of Securities of such series with respect to any covenant or other provision, shall be deemed not to affect the rights under this Indenture of the Holders of Securities of any other series.

(c) It shall not be necessary for the consent of the Securityholders under this Section 14.02 to approve the particular form of such supplemental indenture, but it shall be sufficient if such consent shall approve the substance thereof.

(d) The Company may set a record date for purposes of determining the identity of the Holders of each series of Securities. The Company may, in its discretion, require a written consent or waive compliance by the Company as authorized or permitted by this Section. Such record date shall not be more than 60 days prior to the first solicitation of such consent or waiver or the date of the most recent list of Holders furnished to the Trustee prior to such solicitation, and shall not be later than the date of the next meeting of the Trustee pursuant to Section 312 of the Trust Indenture Act.

(e) Promptly after the execution by the Company and the Trustee of any supplemental indenture pursuant to the provisions of this Section 14.02, the Company shall mail a notice, setting forth in general terms the substance of such supplemental indenture, to the Holders of the Securities at their addresses as the same shall then appear in the Register of the Company. Any failure of the Company to mail such notice, or any delay in mailing the same, shall not, however, in any way impair or affect the validity of any such supplemental indenture.

Section 14.03 Trustee Protected. Upon the request of the Company, accompanied by the Officer's Certificate and Opinion of Counsel, and upon the request of the Trustee, accompanied by the Officer's Certificate and Opinion of Counsel, each stating that the execution of such supplemental indenture is authorized or permitted by this Indenture and such supplemental indenture is the legal, valid and binding obligation of the Company enforceable against it in accordance with its terms (provided, however, that such Officer's Certificate or Opinion of Counsel need not be provided in connection with the execution of a supplemental indenture that evidences a series of Securities pursuant to Section 2.01 hereof) and evidence reasonably satisfactory to the Trustee of consent of the Holders of the Securities, such supplemental indenture is to be executed pursuant to Section 14.02, the Trustee shall join with the Company in the execution of such supplemental indenture unless said supplemental indenture affects the Trustee's own rights, duties or immunities under this Indenture or otherwise. The Trustee may in its discretion, but shall not be obligated to, enter into said supplemental indenture. The Trustee shall be fully protected by the execution of such Officer's Certificate and an Opinion of Counsel.

Section 14.04 Effect of Execution of Supplemental Indenture. Upon the execution of any supplemental indenture pursuant to the provisions of this Article XIV, this Indenture shall be deemed to be modified and amended in accordance therewith and, except as herein otherwise expressly provided, the respective rights, limitations of rights, obligations, duties and immunities under this Indenture of the Trustee, the Company and the Holders of the Securities or of the Securities of any series affected, as the case may be, shall thereafter be determined, exercised and enforced hereunder in accordance with the terms and conditions of such supplemental indenture, and all the terms and conditions of any such supplemental indenture shall be and be deemed to be a part of the terms and conditions of this Indenture for any and all purposes.

Section 14.05 Notation on or Exchange of Securities. Securities of any series authenticated and delivered after the execution of this Indenture pursuant to the provisions of this Article may bear a notation in the form approved by the Trustee as to any matter provided for in this Indenture or supplemental indenture. If the Company or the Trustee shall so

determine, new Securities so modified as to conform, in the opinion of the Trustee and the Board of Directors of the Company, to any such supplemental indenture may be prepared and executed by the Company and authenticated and delivered by the Trustee in exchange for the Securities then Outstanding in equal aggregate principal amounts, and such exchange shall be made with the Holders of the Securities.

Section 14.06 Conformity with TIA. Every supplemental indenture executed pursuant to the provisions of this Article shall comply with the requirements of the Trust Indenture Act as then in effect.

ARTICLE XV

SUBORDINATION OF SECURITIES

Section 15.01 Agreement to Subordinate. In the event a series of Securities is designated as subordinated pursuant to Section 3.01(s) or otherwise provided in a Company Order or in one or more indentures supplemental hereto, the Company, for itself, its successors and assigns, and each Holder of Securities of such series by his, her or its acceptance thereof, likewise covenants and agrees, that the principal of (and premium, if any) and interest, if any, on each and all of the Securities of such series is hereby expressly subordinated in the manner hereinafter set forth, in right of payment to the prior payment in full of all Senior Indebtedness. In the event a series of Securities is designated as subordinated pursuant to Section 3.01(s), this Article XV shall have no effect upon the Securities.

Section 15.02 Distribution on Dissolution, Liquidation and Reorganization; Subrogation of Securities. Subject to Section 3.01(s), the distribution of assets of the Company upon any dissolution, winding up, liquidation or reorganization of the Company, whether by voluntary liquidation, insolvency, reorganization or receivership proceedings or upon an assignment for the benefit of creditors or any other marshalling of liabilities of the Company or otherwise (subject to the power of a court of competent jurisdiction to make other equitable provision not conferred in this Indenture upon the Senior Indebtedness and the holders thereof with respect to the Securities and the holders thereof in the event of reorganization under applicable bankruptcy law):

(a) the holders of all Senior Indebtedness shall be entitled to receive payment in full of the principal thereof (and premium, if any) and interest due thereon before the Holders of the Securities are entitled to receive any payment upon the principal (or premium, if any) or interest on the Securities evidenced by the Securities; and

(b) any payment or distribution of assets of the Company of any kind or character, whether in cash, property or securities, to the Holders of the Securities or the Trustee would be entitled except for the provisions of this Article XV shall be paid by the liquidation or other Person making such payment or distribution, whether a trustee in bankruptcy, a receiver or liquidating trustee or otherwise, directly to the holders of Senior Indebtedness or their representative or representatives or to the trustee or trustees under any indenture under which any instrument of such Senior Indebtedness may

have been issued, ratably according to the aggregate amounts remaining unpaid on account of the principal of (and premium, if any) Senior Indebtedness held or represented by each, to the extent necessary to make payment in full of all Senior Indebtedness remaining unpaid, after giving effect to any concurrent payment or distribution to the holders of such Senior Indebtedness; and

(c) in the event that, notwithstanding the foregoing, any payment or distribution of assets of the Company of any kind, whether in cash, property or securities prohibited by the foregoing, shall be received by the Trustee or the Holders of the Securities, if Senior Indebtedness is paid in full, such payment or distribution shall be paid over, upon written notice to a Responsible Officer of the Trust, to such Senior Indebtedness or his, her or its representative or representatives or to the trustee or trustees under any indenture under which evidencing any of such Senior Indebtedness may have been issued, ratably as aforesaid, as calculated by the Company, for application to Senior Indebtedness remaining unpaid until all such Senior Indebtedness shall have been paid in full, after giving effect to any concurrent payment or distribution to the holders of such Senior Indebtedness.

(d) Subject to the payment in full of all Senior Indebtedness, the Holders of the Securities shall be subrogated to the rights of the holders of Senior Indebtedness (to the extent that distributions otherwise payable to such holder have been applied to the payment of Senior Indebtedness) to receive payments or distributions of cash, property or securities of the Company applicable to Senior Indebtedness until the principal of (and premium, if any) and interest, if any, on the Securities shall be paid in full and no such payments or distributions to the Holders of the Securities or securities otherwise distributable to the holders of Senior Indebtedness shall, as between the Company, its creditors other than the holders of Senior Indebtedness, and the Holders of the Securities be deemed to be a payment by the Company to or on account of the Securities. It is understood that the provisions of this Article XV are and are intended solely for the purpose of defining the relative rights of the Holders of the Securities and the holders of the Senior Indebtedness, on the other hand. Nothing contained in this Article XV or elsewhere in this Indenture or in any other instrument intended to or shall impair, as between the Company, its creditors other than the holders of Senior Indebtedness, and the Holders of the Securities, the obligation of the Company, which is unconditional and absolute, to pay to the Holders of the Securities the principal of (and premium, if any, on the Securities as and when the same shall become due and payable in accordance with their terms, or to affect the right of the Holders of the Securities and creditors of the Company other than the holders of Senior Indebtedness, nor shall anything herein or in any other instrument prevent the Trustee or the Holder of any Security from exercising all remedies otherwise permitted by applicable law upon default under the Securities, subject to the rights, if any, under this Article XV of the holders of Senior Indebtedness in respect of cash, property or securities of the Company received upon the exercise of any such remedy. Upon any payment or distribution of assets of the Company referred to in this Article XV, subject to the provisions of Section 15.06, shall be entitled to conclusively rely upon a certificate of the liquidating trustee or agent of the Company, making any distribution to the Trustee for the purpose of ascertaining the Persons entitled to participate in such distribution, the holders of Senior Indebtedness and other indebtedness of the Company, the amount thereof or payable thereon, the amount or amounts paid or distributed to the holders of Senior Indebtedness and other facts pertinent thereto or to this Article XV.

Section 15.03 No Payment on Securities in Event of Default on Senior Indebtedness. Subject to Section 15.01, no payment by account of principal (or premium, if any), sinking funds or interest, if any, on the Securities shall be made at any time if: (i) a default in the Senior Indebtedness exists that permits the holders of such Senior Indebtedness to accelerate its maturity and (ii) the default is the subject of legal proceedings or the Company has received notice of such default. The Company may resume payments on the Securities when full payment then due for principal (premium, if any), sinking funds and interest on Senior Indebtedness has been made or duly provided for in full in cash or property of equivalent value.

Section 15.04 Payments on Securities Permitted. Subject to Section 15.01, nothing contained in this Indenture or in any of the (a) affect the obligation of the Company to make, or prevent the Company from making, at any time except as provided in Sections payments of principal of (or premium, if any) or interest, if any, on the Securities or (b) prevent the application by the Trustee of any deposited with it hereunder to the payment of or on account of the principal of (or premium, if any) or interest, if any, on the Sec Responsible Officer of the Trustee shall have received at its Corporate Trust Office written notice of any fact prohibiting the making from the Company or from the holder of any Senior Indebtedness or from the trustee for any such holder, together with proof satisfac of such holding of Senior Indebtedness or of the authority of such trustee more than two Business Days prior to the date fixed for

Section 15.06 Notices to Trustee. The Company shall give prompt written notice to a Responsible Officer of the Trustee of any Company that would prohibit the making of any payment of monies or assets to or by the Trustee in respect of the Securities of any the provisions of this Article XV. Subject to Section 15.01, notwithstanding the provisions of this Article XV or any other provisions neither the Trustee nor any Paying Agent (other than the Company) shall be charged with knowledge of the existence of any Senior any fact which would prohibit the making of any payment of moneys or assets to or by the Trustee or such Paying Agent.

and until a Responsible Officer of the Trustee or such Paying Agent shall have received (in the case of a Responsible Officer of the Corporate Trust Office of the Trustee) written notice thereof from the Company or from the holder of any Senior Indebtedness or from any such holder, together with proof satisfactory to the Trustee of such holding of Senior Indebtedness or of the authority of such trustee to give receipt of any such written notice, the Trustee shall be entitled in all respects conclusively to presume that no such facts exist; provided that, if at least two Business Days prior to the date upon which by the terms hereof any such moneys or assets may become payable for any such Senior Indebtedness, without limitation, the payment of either the principal (or premium, if any) or interest, if any, on any Security) a Responsible Officer of the Trustee has not have received with respect to such moneys or assets the notice provided for in this Section 15.06, then, anything herein contained notwithstanding, the Trustee shall have full power and authority to receive such moneys or assets and to apply the same to the purposes for which they were received, and shall not be affected by any notice to the contrary which may be received by it within two Business Days prior to the date upon which the Trustee shall be entitled to rely on the delivery to it of a written notice by a Person representing himself to be a holder of Senior Indebtedness or a trustee on behalf of such holder) to establish that such a notice has been given by a holder of Senior Indebtedness or a trustee on behalf of such holder. In the event that the Trustee determines in good faith that further evidence is required with respect to the right of any Person to participate in any payment or distribution pursuant to this Article XV, the Trustee may request such Person to furnish such evidence to the reasonable satisfaction of the Trustee as to the amount of Senior Indebtedness held by such Person, the extent to which such Person is entitled to participate in such payment or distribution and any other facts pertinent to the rights of such Person under this Article XV and, if such evidence is not furnished, the Trustee may defer any payment to such Person pending judicial determination as to the right of such Person to receive such payment.

Section 15.07 Trustee as Holder of Senior Indebtedness. Subject to Section 15.01, the Trustee in its individual capacity shall be entitled to exercise the rights set forth in this Article XV in respect of any Senior Indebtedness at any time held by it to the same extent as any other holder of such Senior Indebtedness and nothing in this Indenture shall be construed to deprive the Trustee of any of its rights as such holder. Nothing in this Section shall apply to claims of, or payments to, the Trustee under or pursuant to Sections 7.05 or 11.01.

Section 15.08 Modifications of Terms of Senior Indebtedness. Subject to Section 15.01, any renewal or extension of the time for payment of any Senior Indebtedness or the exercise by the holders of Senior Indebtedness of any of their rights under any instrument creating or evidencing such Senior Indebtedness, including, without limitation, the waiver of default thereunder, may be made or done all without notice to or assent from the holders of the Securities or the Trustee. To the extent permitted by applicable law, no compromise, alteration, amendment, modification, extension, or other change of, or waiver, consent or other action in respect of, any liability or obligation under or in respect of, or of any of the terms or conditions of any indenture or other instrument under which any Senior Indebtedness is outstanding or of such Senior Indebtedness, or any release in accordance with the provisions of any applicable document, shall in any way alter or affect any of the provisions of this Article XV or the Securities relating to the subordination thereof.

Section 15.09 Reliance on Judicial Order or Certificate of Liquidating Agent. Subject to Section 15.01, upon any payment or distribution of the Company referred to in this Article XV, the Trustee and the Holders of the Securities shall be entitled to conclusively rely upon a decree entered by any court of competent jurisdiction in which such insolvency, bankruptcy, receivership, liquidation, reorganization, winding up or similar case or proceeding is pending, or a certificate of the trustee in bankruptcy, liquidating trustee, custodian, receiver, benefit of creditors, agent or other person making such payment or distribution, delivered to the Trustee or to the Holders of Securities, of ascertaining the Persons entitled to participate in such payment or distribution, the holders of Senior Indebtedness and other indebtedness of the Company, the amount thereof or payable thereon, the amount or amounts paid or distributed thereon and all other facts pertinent thereto.

XV.

Section 15.10 Satisfaction and Discharge; Defeasance and Covenant Defeasance. Subject to Section 15.01, amounts and Unsecured Obligations deposited in trust with the Trustee pursuant to and in accordance with Article XII and not, at the time of such deposit, deposited under Sections 15.02 or 15.03 shall not be subject to this Article XV.

Section 15.11 Trustee Not Fiduciary for Holders of Senior Indebtedness. With respect to the holders of Senior Indebtedness, the Trustee undertakes to perform or observe only such of its covenants and obligations as are specifically set forth in this Article XV, and no implied obligations with respect to the holders of Senior Indebtedness shall be read into this Indenture against the Trustee. The Trustee shall not owe any fiduciary duty to the holders of Senior Indebtedness. The Trustee shall not be liable to any such holder if it shall pay over or disburse on behalf of Holders of Securities or the Company, or any other Person, moneys or assets to which any holder of Senior Indebtedness is entitled by virtue of this Article XV or otherwise.

ARTICLE XVI

MISCELLANEOUS PROVISIONS

Section 16.01 Certificates and Opinions as to Conditions Precedent.

(a) Upon any request or application by the Company to the Trustee to take any action under any of the provisions of this Indenture, the Company shall furnish to the Trustee an Officer's Certificate stating that all conditions precedent, if any, provided for in this Indenture to the proposed action have been complied with and an Opinion of Counsel stating that in the opinion of such counsel all such conditions precedent have been complied with, except that in the case of any such application or demand as to which the furnishing of such document is specifically required by a provision of this Indenture relating to such particular application or demand, no additional certificate or opinion need be furnished.

(b) Each certificate or opinion provided for in this Indenture and delivered to the Trustee with respect to compliance with any covenant provided for in this Indenture (other than the certificates provided pursuant to Section 6.05 of this Indenture) shall include a statement that the Person giving such certificate or opinion has read such covenant.

or condition; (ii) a brief statement as to the nature and scope of the examination or investigation upon which the statements or opinion of such Person are based; (iii) a statement that, in the view or opinion of such Person, he or she has made such examination or investigation as is necessary to enable such Person to express an informed view or opinion as to whether or not such covenant or condition has been complied with; and (iv) a statement that, in the view or opinion of such Person, such condition or covenant has been complied with.

(c) Any certificate, statement or opinion of an officer of the Company may be based, insofar as it relates to legal matters, upon a certificate or opinion of, or representations by, counsel, unless such officer knows, or in the exercise of reasonable care should know, that the certificate or representations with respect to the matters upon which his or her certificate, statement or opinion is based are erroneous. Any certificate or opinion of counsel may be based, insofar as it relates to factual matters, upon a certificate, statement or opinion of, or representation by, officers of the Company stating that the information with respect to such factual matters is in the possession of the Company, unless such officer knows, or in the exercise of reasonable care should know, that the certificate, statement or opinion or representations with respect to the matters upon which his or her certificate, statement or opinion is based are erroneous.

(d) Any certificate, statement or opinion of an officer of the Company or of counsel to the Company may be based, insofar as it relates to accounting matters, upon a certificate or opinion of, or representations by, an accountant or firm of accountants, unless such officer knows, or in the exercise of reasonable care should know, that the certificate or opinion or representations with respect to the matters upon which his or her certificate, statement or opinion may be based are erroneous. Any certificate or opinion of any firm of registered public accountants filed with the Trustee shall contain a statement that such firm is independent.

(e) In any case where several matters are required to be certified by, or covered by an opinion of, any specified Person, that all such matters be certified by, or covered by the opinion of, only one such Person, or that they be so certified or covered by or the opinion of, more than one such Person, one or more such Persons may certify or give an opinion with respect to some matters and one or more other such Persons as to other matters. Any one such Person may certify or give an opinion as to such matters in one or several documents.

(f) Where any Person is required to make, give or execute two or more applications, requests, consents, certificates, statements or other instruments under this Indenture, they may, but need not, be consolidated and form one instrument.

Section 16.02 Trust Indenture Act Controls. If and to the extent that any provision of this Indenture limits, qualifies or conflicts with the provisions imposed by, or another provision included in this Indenture which is required to be included in this Indenture by any of the provisions of the Trust Indenture Act, 1939, 38 U.S.C. § 318, inclusive, of the Trust Indenture Act, such imposed duties or incorporated provision shall control.

Section 16.03 Notices to the Company and Trustee. Any notice or demand authorized by this Indenture to be made upon, given or filed with, the Company or the Trustee shall be sufficiently made, given, furnished or filed for all purposes if it shall be mailed, delivered

(a) the Company, at Activision Blizzard, Inc., 3100 Ocean Park Boulevard, Santa Monica, California 90405, Attention: General Counsel, or at such other address or email or facsimile number as may have been furnished in writing to the Trustee by the Company;

(b) the Trustee, at the Corporate Trust Office of the Trustee, Attention: Michael Tu, Account Manager.

Any such notice, demand or other document shall be in the English language.

Section 16.04 Notices to Securityholders; Waiver. Any notice required or permitted to be given to Securityholders shall be sufficiently given (unless otherwise herein expressly provided),

(a) if to Holders, if given in writing by first class mail, postage prepaid, to such Holders at their addresses as the same are shown in the Register of the Company; *provided*, that in the event of suspension of regular mail service or by reason of any other cause it shall be impracticable to give notice by mail, then such notification as shall be given with the approval of the Trustee shall constitute sufficient notice for all purposes hereunder; or

(b) If a series of Securities has been issued in the form of one or more Global Securities through DTC as Depositary, then notice shall be provided with respect to such series of Securities by delivery of such notice to DTC for posting through its "Legal Notice Service" or any successor system thereof.

Where this Indenture provides for notice in any manner, such notice may be waived in writing by the Person entitled to receive such notice before or after the event, and such waiver shall be the equivalent of such notice. Waivers of notice by Holders shall be filed with the Trustee. Filing shall not be a condition precedent to the validity of any action taken in reliance on such waiver. In any case where notice to Holders is given by mail; neither the failure to mail such notice nor any defect in any notice so mailed to any particular Holder shall affect the sufficiency of such notice with respect to other Holders, and any notice that is mailed in the manner herein provided shall be conclusively presumed to have been duly given. In any case where notice to Holders is given by publication, any defect in any notice so published as to any particular Holder shall not affect the sufficiency of such notice with respect to other Holders, and any notice that is published in the manner herein provided shall be conclusively presumed to have been duly given.

Section 16.05 Legal Holiday. Unless otherwise specified pursuant to Section 3.01, in any case where any Interest Payment Date, Redemption Date or Maturity of any Security of any series shall not be a Business Day at any Place of Payment for the Securities of that series, then payment of principal and premium, if any, or interest need not be made at such Place of Payment on such date, but may be made on the next succeeding Business Day at such Place of Payment with the same force and effect as if made on such Interest Payment Date, Redemption Date or Maturity and no interest shall be paid on such payment for the period from and after such Interest Payment Date, Redemption Date or Maturity, as the case may be, to such Business Day when payment is made or duly provided for on such Business Day.

Section 16.06 Effects of Headings and Table of Contents. The Table of Contents and headings of the Articles and Sections of the Indenture, which have been inserted for convenience of reference only, are not to be considered a part of this Indenture and shall in no way modify or restrict the operation of any provisions hereof.

Section 16.07 Successors and Assigns. All covenants and agreements in this Indenture by the parties hereto shall bind their respective successors and assigns and inure to the benefit of their permitted successors and assigns, whether so expressed or not.

Section 16.08 Separability Clause. In case any provision in this Indenture or in the Securities shall be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby.

Section 16.09 Benefits of Indenture. Nothing in this Indenture expressed and nothing that may be implied from any of the provisions hereof, intended, or shall be construed, to confer upon, or to give to, any Person or corporation other than the parties hereto and their successors and assigns of the Securities any benefit or any right, remedy or claim under or by reason of this Indenture or any covenant, condition, stipulation or agreement hereof, and all covenants, conditions, stipulations, promises and agreements in this Indenture contained shall be for the sole benefit of the parties hereto and their successors and of the Holders of the Securities.

Section 16.10 Counterparts Originals. The parties may sign any number of copies of this Indenture. Each signed copy shall be deemed to be an original and all of them together represent the same agreement. The exchange of copies of this Indenture and of signature pages by facsimile or PDF shall constitute effective execution and delivery of this Indenture as to the parties hereto and may be used in lieu of the original Indenture for all purposes.

Section 16.11 Governing Law; Waiver of Trial by Jury. This Indenture and the Securities will be governed by and construed in accordance with the laws of the state of New York.

EACH PARTY HERETO, AND EACH HOLDER OF A SECURITY BY ACCEPTANCE THEREOF, HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY AND ALL RIGHT TO TRIAL BY JURY IN ANY LEGAL ACTION OR PROCEEDING ARISING OUT OF OR RELATING TO THIS INDENTURE, THE NOTES OR THE TRANSACTIONS CONTEMPLATED BY THIS INDENTURE.

Section 16.12 U.S.A. Patriot Act. The parties hereto acknowledge that in accordance with Section 326 of the U.S.A. Patriot Act, all financial institutions and in order to help fight the funding of terrorism and money laundering, is required to obtain, verify, and report information that identifies each person or legal entity that establishes a relationship or opens an account with the Trustee. The parties to this Indenture will provide the Trustee with such information as it may request in order for the Trustee to satisfy the requirements of the U.S.A. Patriot Act.

Section 16.13 Force Majeure. In no event shall the Trustee be responsible or liable for any failure or delay in the performance hereunder arising out of or caused by, directly or indirectly, forces beyond its control, including, without limitation, strikes, work stoppages, acts of war or terrorism, civil or military disturbances, nuclear or natural catastrophes or acts of God, and interruptions, loss or malfunction of communications or computer (software and hardware) services; it being understood that the Trustee shall use reasonable efforts with accepted practices in the banking industry to resume performance as soon as practicable under the circumstances.

IN WITNESS WHEREOF, the parties have caused this Indenture to be duly executed as of the date first written a

ACTIVISION BLIZZARD, INC.,

as Issuer

By: /s/ Chris B. Walther

Name: Chris B. Walther

Title: Chief Legal Officer

WELLS FARGO BANK, NATIONAL ASSOCIATION,

as Trustee

By: /s/ Maddy Hughes

Name: Maddy Hughes

Title: Vice President

EXHIBIT A

[FORM OF FACE OF SECURITY]

THIS SECURITY IS A GLOBAL SECURITY WITHIN THE MEANING OF THE INDENTURE HEREINAFTER REFERRED TO AS THE "INDENTURE," REGISTERED IN THE NAME OF THE DEPOSITARY OR A NOMINEE OF THE DEPOSITARY, WHICH MAY BE TREATED AS THE OWNER OF THIS SECURITY FOR ALL PURPOSES, INCLUDING THE COMPANY, THE TRUSTEE AND ANY AGENT THEREOF AS OWNER AND HOLDER OF THIS SECURITY FOR ALL PURPOSES.

UNLESS THIS CERTIFICATE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITARY TRUST COMPANY, INC. ("DTC") TO THE COMPANY OR ITS AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE OR PAYMENT, THIS CERTIFICATE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO., INC. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT HEREON IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE OR OTHER USE HEREOF IN VIOLATION OF THE ABOVE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL SINCE THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AGREED IN WRITING TO THE EFFECTS SET FORTH HEREIN.

TRANSFERS OF THIS GLOBAL SECURITY SHALL BE LIMITED TO TRANSFERS IN WHOLE, BUT NOT IN PART, BY THE DEPOSITARY TO A NOMINEE OF THE DEPOSITARY, OR BY A NOMINEE OF THE DEPOSITARY TO THE DEPOSITARY OR TO ANOTHER NOMINEE OF THE DEPOSITARY, OR BY THE DEPOSITARY OR ANY SUCH NOMINEE TO A SUCCESSOR DEPOSITARY OR TO ANOTHER SUCCESSOR DEPOSITARY OF SUCH SUCCESSOR DEPOSITARY.

CUSIP No.

Activision Blizzard, Inc.
NOTES DUE 20

NOTES DUE 20

No. _____ \$ _____
As revised by the
Schedule of
Increases or
Decreases in Global
Security attached
hereto

Interest. Activision Blizzard, Inc., a Delaware corporation (herein called the “Company”, which term includes any successors and assigns of the Company), for value received, hereby promises to pay to _____ or registered assigns, the principal sum of _____ dollars (\$ _____), as revised by the Schedule of Increases or Decreases in Global Security attached hereto, on _____, 20____, or from _____, 20____ or from the most recent Interest Payment Date to which interest has been paid or duly provided for, such interest to be paid in _____ arrears on _____ and _____ in each year, commencing _____, 20____ at the rate of ____% per annum, until the principal hereof is paid in full, or until the principal hereof is no longer available for payment.

Method of Payment. The interest so payable, and punctually paid or duly provided for, on any Interest Payment Date will, as to the Regular Record Date, be paid to the Person in whose name this Security (or one or more Predecessor Securities) is registered at the close of business on the Regular Record Date for such interest, which shall be _____ or _____, as the case may be, next preceding such Interest Payment Date. Any sum of money so payable and not punctually paid or duly provided for will forthwith cease to be payable to the Holder on such Regular Record Date and may either be paid or not paid, at the discretion of the Trustee, in whose name this Security (or one or more Predecessor Securities) is registered at the close of business on a Special Record Date. If payment of such Defaulted Interest is to be fixed by the Trustee, notice thereof having been given to Holders of Securities of this series not less than 30 days prior to such Special Record Date, all as more fully provided in said Indenture. Payment of the principal of (and premium, if any) and any sum of money so payable and not punctually paid or duly provided for on any Interest Payment Date will be made at the Corporate Trust Office in U.S. Dollars.

Reference is hereby made to the further provisions of this Security set forth on the reverse hereof, which further provisions shall have the same effect as if set forth at this place.

Authentication. Unless the certificate of authentication hereon has been executed by the Trustee referred to on the reverse hereof and signed by its authorized officer, this Security shall not be entitled to any benefit under the Indenture or be valid or obligatory for any purpose.

IN WITNESS WHEREOF, the Company has caused this instrument to be duly executed under its corporate seal.

Dated: _____, 20__

ACTIVISION BLIZZARD, INC.

By: _____

Name: _____

Title: _____

TRUSTEE'S CERTIFICATE OF AUTHENTICATION

This is one of the Securities of the series designated therein referred to in the within-mentioned Indenture.

Date of authentication: _____ WELLS FARGO BANK, NATIONAL ASSOCIATION,
as Trustee

By: _____
Authorized Signatory

Indenture. This Security is one of a duly authorized issue of securities of the Company (herein called the “Securities”), issued one or more series under an Indenture, dated as of _____, 20__, [as supplemented by a ____ Supplemental Indenture dated ____ supplemented, herein called the “Indenture”), between the Company and Wells Fargo Bank, National Association, as Trustee (hereinafter called the “Trustee”, which term includes any successor trustee under the Indenture), to which Indenture and all indentures supplemental thereto have been hereby made for a statement of the respective rights, limitations of rights, duties and immunities thereunder of the Company, the Trustee and the holders of the Securities and of the terms upon which the Securities are, and are to be, authenticated and delivered. This Security is one of the Securities on the face hereof, initially limited in aggregate principal amount to \$_____.

For purposes of determining the optional redemption price, the following definitions are applicable:

Except as set forth above, the Securities will not be redeemable by the Company prior to maturity [and will not be entitled to sinking fund].

Amendment, Modification and Waiver. The Indenture permits, with certain exceptions as therein provided, the amendment, modification or the rights and obligations of the Company and the rights of the Holders of the Securities of each series to be affected at any time by the Company and the Trustee with the consent of the Holders of a majority in aggregate principal amount of the Securities Outstanding of each series to be affected. The Indenture also contains provisions permitting the Holders of a majority in aggregate principal amount of the Securities of each series at the time Outstanding, on behalf of the Holders of all Securities of such series, to waive compliance by the Company with certain provisions of the Indenture and certain past defaults under the Indenture and their consequences.

Any such consent or waiver by the Holder of this Security shall be conclusive and binding upon such Holder and upon all future Holders and of any Security issued upon the registration of transfer hereof or in exchange herefor or in lieu hereof, whether or not notation of such consent or waiver is made upon this Security.

Denominations, Transfer and Exchange. The Securities of this series are issuable only in registered form without coupons in denominations of \$2,000 and in integral multiples of \$1,000 in excess thereof. As provided in the Indenture and subject to certain limitations therein set forth, the Securities of this series are exchangeable for a like aggregate principal amount of Securities of like tenor of a different authorized denomination, at the option of the Holder surrendering the same.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Security is registerable in the books of the Company upon surrender of this Security for registration of transfer at the Registrar accompanied by a written request for transfer in form satisfactory to the Company and the Registrar duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more Securities of this series and of like tenor, of authorized denominations and for the same aggregate principal amount, will be issued to the designees or transferees.

No service charge shall be made for any such registration of transfer or exchange, but the Company may require payment of a reasonable sum to cover any tax or other governmental charge payable in connection therewith.

Persons Deemed Owners. Prior to due presentment of this Security for registration of transfer, the Company, the Trustee and the Registrar or the Company or the Trustee may treat the Person in whose name this Security is registered as the owner hereof for all purposes, whether or not the Security is overdue, and neither the Company, the Trustee nor any such agent shall be affected by notice to the contrary.

Miscellaneous. The Indenture and this Security shall be governed by and construed in accordance with the laws of the State of New York in regard to the conflicts of law rules of said State.

All terms used in this Security and not defined herein shall have the meanings assigned to them in the Indenture.

SCHEDULE OF INCREASES OR DECREASES IN GLOBAL SECURITY

The following increases or decreases in this Global Security have been made:

Date of Exchange	Amount of increase in Principal Amount of this Global Security	Amount of decrease in Principal Amount of this Global Security	Principal Amount of this Global Security following each decrease or increase	Signature of authorized signatory of Trustee